CONDOMINIUM AND ADMINISTRATION REGULATIONS FOR THE "HORIZONTAL RESIDENTIAL, COMMERCIAL, TOURIST, AND EDUCATIONAL CONDOMINIUM OF INDIVIDUALIZED PRIMARY SUBSIDIARY PROPERTIES ECOVILLA SAN MATEO"

CHAPTER I. GENERAL PROVISIONS, SCOPE OF APPLICATION, AND DEFINITIONS. **One. Name.** The Condominium is called **"MODIFICATION ZERO ONE OF HORIZONTAL RESIDENTIAL - COMMERCIAL - TOURIST - EDUCATIONAL CONDOMINIUM OF INDIVIDUALIZED PRIMARY SUBSIDIARY PROPERTIES**

ECOVILLA SAN MATEO INDIVIDUALIZED PRIMARIES, which for commercial purposes may be identified as CONDOMINIO LA ECOVILLA SAN MATEO. **Two. Scope of Application.** These Regulations govern relations within the Condominium and, except as otherwise provided herein, shall be binding on all owners, co-owners, holders of real rights, lessees, sublessees, residents, visitors, employees, suppliers, and in general any person who enters the condominium, as well as any residential sub-condominiums that may be formed, who must comply with these regulations. Likewise, the owner who acquires, rents, lends, or grants the use and enjoyment of any subsidiary property acknowledges and accepts these regulations, their modifications, whether registered or not, and the condominium regulations in force. They shall also be obliged to state in each rental, use, or enjoyment contract, or any other contract related to a subsidiary of the condominium, the obligation to comply with the provisions of LAW seven thousand nine hundred and thirty-three, its regulations, these regulations, any amendments thereto, and the agreements and/or regulations issued by the Assembly and/or the Condominium Administration and/or the Condominium. Any agreement, contract, or regulation that contravenes the provisions of these regulations shall be considered null and void, making it clear that the regulations or provisions issued by the Assembly or the Administration in the exercise of their powers and intended to supplement and clarify these regulations shall not be considered contrary to them. These regulations govern, among other things, the formation and administration of the Condominium, the relations between Condominium Owners, their rights and obligations, as well as their relations with the Condominium's governing bodies and with third parties, the relationship between the Administration and other Condominium bodies, as well as with any person who enters the Condominium under any circumstances. The Condominium is designed so that independent condominiums or sub-condominiums may be built in the tourist, commercial, and educational areas of the subsidiary properties without losing their nature as subsidiary properties of the Condominium. The creation of sub-condominiums in residential areas is not permitted. The regulations of each of the residential sub-condominiums that may be established in the subsidiary properties in the future, except as provided in these regulations, shall be in harmony and uniformity with these regulations, which, except as provided herein, shall be applicable and generally binding within the Condominium and the residential sub-condominiums, and their provisions shall prevail, with the exception of subsidiaries that are not for residential use, in which case any regulations established for the sub-condominium shall have their own regulations specific to their activity, whether commercial, educational, or mixed. It is hereby established that due to their location, configuration, and conceptualization, as well as the conceptualization of the Condominium, the first individualized subsidiary properties numbered one, two, three, G seven hundred and one, G seven hundred and two, G seven hundred three, G seven hundred four, G seven hundred five, and G seven hundred six inclusive, may constitute sub-condominiums, and the sub-condominiums that m a y be established therein shall not be subject t o these regulations, but rather

They shall comply with current national regulations and their bylaws may contain rules that differ from this document in order to regulate the sub-condominium internally and relations with its co-owners. **Three. Interpretation.** If there is any confusion regarding any of the articles of these regulations and their scope, the Owners' Assembly shall be responsible for providing the corresponding interpretation and/or clarification, and its decision shall be valid and binding on all condominium owners, residents, or third parties entering the condominium. Similarly, it is understood that in the event of any amendment to the national laws governing condominiums, these shall, by virtue of their higher rank, be binding on the condominium and shall prevail over these Regulations insofar as they benefit the condominium, such that if there is a variation between the provisions of these Regulations and the new legislation, the provisions of the enacted and current Laws shall prevail if their application is more beneficial to the interests of the condominium, especially if it facilitates the reaching of agreements within the Condominium. **Four. Definitions.** For the application and interpretation of these Regulations, the terms listed below shall have the following meanings: - **ADMINISTRATOR:** Refers to the natural or legal person appointed by the Condominium Owners' Meeting as Administrator of the Condominium, who shall enjoy the powers and authority granted by these Regulations, the Law, and the deed of assignment to the condominium property regime. **- COMMON AREAS AND/OR PROPERTY:** These are areas and/or property intended for common (general) or restricted use and enjoyment, including but not limited to those described as such in the site design plans, the deed of incorporation of the condominium, the Law Regulating Condominium Property, its Regulations, these Regulations, and those that by their nature have such status because they are necessary for the condominium. They are indivisible assets for general or restricted use, whether built or not, that belong to all the owners of the condominium, who shall have a right to them proportional to the percentage that the area designated for their subsidiary property within the condominium represents. However, no owner may be restricted in the rational use and enjoyment of common property, nor may they claim to have a greater right to the enjoyment of such property because their percentage therein exceeds that of other owners, nor may they waive their right thereto. Similarly, easements in favor of government entities or service providers that are necessary for the proper functioning of the condominium and its subsidiaries shall be considered common property. - **COMMON AREAS AND/OR PROPERTY WITH RESTRICTED USE:** These are areas and/or property identified as such in the deed of incorporation, the regulations, and the assembly agreements, which, depending on the case, shall be duly delimited by the developer and/or the administrator and which, due to their nature, have restrictions on their use or purpose, all in accordance with the provisions of the condominium deed, the regulations, and/or the Condominium Owners' Meeting. It is understood that the owners who are assigned a common area of restricted use for their exclusive use will be responsible for maintaining said area, for which they may implement landscaping designs, as well as irrigation systems, always within the parameters defined by these regulations, the construction regulations, and the guidelines issued by the Administration and the Design and Construction Committee. Similarly, the stream protection areas of subsidiary properties two and three, identified on the plans, are considered restricted use areas and shall be for the exclusive use of the subsidiaries adjacent to those areas. The use of these areas by other subsidiaries, owners, or residents is not permitted. - **LESSEE:** Natural or legal person who

lease a subsidiary of the Condominium according to its nature. **- OWNERS' ASSEMBLY:** Hereinafter referred to as the "Assembly." It may also be referred to as the Condominium Owners' Assembly and constitutes the supreme body of the Condominium. It is made up of the condominium owners or their representatives legally gathered in Assembly in accordance with the provisions of the LAW. - **PRIVATE or EXCLUSIVE PROPERTY:** The subsidiaries and their accessories, as well as any other property that, according to the LAW, these Regulations, or the deed of assignment to the Law Regulating Condominium Property, is granted such status, constitute the private property of the condominium. - **CONSTRUCTION COMMITTEE:** Also known as the "Building Committee." A technical body appointed by the Owners' Meeting that is responsible for interpreting the Building Regulations and, in general, for all matters relating to urban planning, architecture, and construction issues affecting the condominium owners and the condominium itself. It analyzes construction proposals submitted by the condominium owners and recommends to the Advisory Committee proposals for sanctions in the event of non-compliance with condominium and condominium construction issues, with the functions determined by these regulations and the Owners' Assembly. Ensures the harmony and architectural uniformity established by the project developer. Defines, at its discretion, the acceptance or rejection of architectural and construction proposals submitted by the condominium owners when they differ from those stipulated in the Building Regulations. The foregoing does not create any right or precedent for the acceptance of all proposals that do not comply with the aforementioned Regulations. - **PROJECT CONCEPT:** This refers to the architectural concept that the Development Company has defined for the Condominium and which, in general terms, consists of the following: This is a residential, commercial, and educational tourist condominium of individualized primary subsidiary properties, developed under a low-density concept in harmony with nature, using regenerative practices, seeking self-sustainability, efficiency, and recycling, and ensuring the lowest possible impact on its development and the conservation of natural resources. - **CONDOMINIUM or MAIN CONDOMINIUM:** This is the Condominium "**MODIFICATION ZERO ONE OF HORIZONTAL RESIDENTIAL - COMMERCIAL - TOURIST - EDUCATIONAL CONDOMINIUM OF INDIVIDUALIZED PRIMARY SUBSIDIARY PROPERTIES ECOVILLA SAN**

MATEO, hereby constituted, which is a condominium of individualized primary subsidiary properties, the private area with the corresponding number of subsidiary properties and their respective common areas, where each condominium owner is the exclusive owner of the private area comprising their subsidiary property, including any buildings constructed thereon, and is co-owner of the common areas. - **INDEPENDENT CONDOMINIUM or SUB-CONDOMINIUM:** This refers to those subsidiary properties that, in accordance with these Regulations and the Law, will in the future be subject to the Condominium Property Regime, thus forming an independent condominium or sub-condominium with its own restricted or unrestricted access, on the understanding that, as it is a condominium of individualized primary subsidiary properties, some of the subsidiary properties of the condominium may in the future constitute independent condominiums. - **CONDOMINIUM OWNER OR PROPERTY OWNER:** Refers to natural or legal persons, whether or not established in the Condominium, who have title to one or more subsidiary properties of the Condominium. - **CONDOMINIUM OR MAINTENANCE FEE:** Also called the Ordinary Fee, this is the amount that each condominium owner is required to pay periodically in order to contribute to the payment of Common Expenses, which must be set and approved by the Owners' Assembly according to the budget of expenses.

and maintenance of the Condominium**.** Owners are required to contribute and pay the maintenance fee on time in accordance with the method established by these regulations and the Assembly for this purpose, with payment to be made monthly, unless otherwise agreed by the Assembly. Similarly, this fee includes the payment of services provided by each subsidiary, as well as fines and surcharges for violations of these regulations. - **EXTRAORDINARY FEE:** This is the amount that each condominium owner is required to pay in order to contribute to the payment of extraordinary projects or expenses, as determined by the extraordinary fee or budget approved by the Owners' Assembly. The Owners are obliged to contribute and pay the extraordinary maintenance fee on time in accordance with the deadline and payment method established by these regulations and the Assembly, given that, due to their condition and location, the first individualized subsidiary properties numbered one, two, three, G seven hundred and one, G seven hundred and two, G seven hundred and three, G seven hundred and four, G seven hundred and five, and G seven hundred and six inclusive, shall not be obliged to pay extraordinary fees, unless they voluntarily agree to participate in them. - **DOLLARS:** Legal tender of the United States of America. - **CONSTITUTIVE DEED:** The deed of incorporation of the Condominium. - **DEVELOPER:** Refers to the company (or companies) **ECOVILLA SAN MATEO S.A.,** with legal identification number three hundred and one thousand eight hundred and forty-four thousand two hundred and sixty-seven, and/or its successors and/or assignees of said status as Developer of the Condominium. - **COMMON PARKING SPACES:** These are areas located in the common area, for general or restricted use, within the CONDOMINIUM, intended for the parking of vehicles in accordance with the rules of use of these Regulations and as defined by the Assembly of Condominium Owners or the Administration itself in the exercise of its powers, which may also define a fee for their use, the amount of which shall be for the benefit of the condominium. Similarly, additional areas may be set aside in the future for use as common parking, if approved by the Condominium Owners' Meeting. - **FACADE:** Refers to the elevation or geometry of the Condominium or any of its AFFILIATES, which may be front, side, or rear; or interior when corresponding to internal courtyards. - **BRANCH PROPERTY or BRANCH:** Refers to the independent private property unit located within the Condominium, clearly defined as such in the deed of assignment to the condominium property regime, which is duly conditioned for autonomous use, for the exclusive use of its owner(s), according to its purpose, and registered in the National Registry under its own independent registration number. - **MIXED-USE SUBSIDIARY PROPERTY:** Refers to subsidiary properties that, due to their nature, according to construction plans, are intended for commercial, tourist, and educational use or residential use in conjunction with one or more of the above uses, understood as subsidiary properties numbers one, two, three, G seven hundred and one, G seven hundred and two, G seven hundred and three, G seven hundred and four, G seven hundred and five, and G seven hundred and six. - **PARENT PROPERTY:** Property that gave rise to the Condominium, consisting of all the Subsidiary Properties of the Condominium and their corresponding common areas. - **COMMON EXPENSES:** All expenses established by LAW and its regulations, these REGULATIONS, or those necessary expenses that must be paid by the owners of the subsidiaries in order to maintain and guarantee the existence, safety, health, conservation, access, aesthetics, recreation, and beautification of the Condominium and its property and common areas, including but not limited to solid waste collection, security or surveillance, water, electricity, maintenance of common areas and property, beautification and improvement of common and recreational areas, their equipment, maintenance of such property, equipment, and accessories.

the payment of administrative expenses and other expenses necessary to ensure the proper and efficient operation, administration, and maintenance of the Condominium, and any other services required by the Condominium, in addition to those indicated by the Condominium Owners' Meeting upon recommendation of the Condominium Administration in compliance with its obligations. - **CONDOMINIUM OWNERS' ASSEMBLY:** Hereinafter referred to as the "Assembly." A representative body of the Owners appointed by the Owners' Assembly that is responsible for coordinating requests, special requirements, and issues suggested by the Condominium Owners with the Administrator, so that the latter may take the necessary actions as directed by the Assembly. To request the Administrator to apply, at his or her discretion, penalties for non-compliance with these Regulations and with the provisions thereof on construction issues in the Condominium, if these affect it positively or negatively from the point of view of architectural harmony. - **LAW:** The Law Regulating Condominium Property, number seven thousand nine hundred and thirty-three, of October 28, 1999, and its amendments. In addition to other laws and regulations of direct interest to the Condominium, such as the Urban Code, the Building Regulations, and the Regulations to the Condominium Property Law, which is Decree thirty-two thousand three hundred and three of March 2, 2005. - **LOT SOLD:** Refers to the subsidiary property already transferred by the Development Company to a third party, not including as third parties the trustees or trusts required by the Development Company for the development of the project. - **SIMPLE MAJORITY:** This refers to a majority that is achieved when, in a vote of the Condominium Owners' Assembly, the affirmative votes of the subsidiaries—weighted by the percentage of value assigned to each in the deed of incorporation—add up to more than fifty percent of the total value of the condominium represented by the subsidiaries that have exercised their right to vote, either in person or by proxy. This definition may change if the LAW modifies the way in which agreements are made at Condominium Owners' Meetings. - **NECESSARY IMPROVEMENT:** This refers to the actions necessary for the proper maintenance of common areas and property and to prevent their deterioration or destruction, which must be approved by the Meeting by the votes established by LAW or these regulations.

- USEFUL IMPROVEMENT: Refers to improvements that focus on improving common property and its use, increasing its value, usefulness, and capacity in order to obtain a benefit for the co-owners and/or the Condominium, which must also be approved by the Assembly by the votes established by LAW or these regulations. - **CONDOMINIUM OBLIGATIONS:** In these regulations, this refers to the financial obligations that must be assumed by the owners of the subsidiaries by virtue of their status as owners, including but not limited to common expenses, ordinary and extraordinary fees approved by the assembly, the payment of fines, infractions, penalties, interest, taxes, or any financial obligation established by law, these regulations, the Condominium Owners' Meeting of this condominium, and/or the Administration. - **SUPPLIER:** The individual or legal entity that provides services to the Condominium or its Condominium Owners. - **PENALTY SYSTEM:** Refers to those articles that are regulated and have some type of penalty, or any other system that establishes penalties issued by the Condominium Owners' Meeting or the Administration itself in the exercise of its powers. - **REGULATIONS:** Refers to these regulations and any validly approved amendments thereto. - **CONDOMINIUM REGULATIONS:** Refers to all regulations in force and applicable to the Condominium and any person entering therein; it includes the provisions

of the LAW, its regulations, those of these regulations and those issued by the Condominium Owners' Association and the Administration in the exercise of their powers, as well as any other regulations that may apply to the condominium, and that any Owner who sells, leases or transfers the use of their Unit under any title shall be obliged to communicate these regulations to the new owner, so that ignorance of them cannot be claimed. - **RESIDENT:** Any Owner or Lessee who lives in the Condominium. - **SETBACKS:** Refers to open, unbuilt spaces between a structure and the boundaries of the unit where said structure is located, with setbacks being front, side, and rear. - **SUB-UNIT:** The units of a sub-condominium. - **WORKERS:** Individuals in general who habitually provide personal services to the Condominium Owners, Tenants, Occupants, or Possessors within the Condominium. - **HOUSING UNIT:** Architectural space developed to meet the needs of a single family unit where there are no physical restrictions on internal and external communication between all habitable and non-habitable spaces. Practical examples of a building constituting a single Housing Unit include: a single electricity meter and a single water meter, a single pedestrian and vehicular access, a main kitchen, and a single service area consisting of a laundry room and a utility room. - **NEIGHBORHOOD:** Refers to the group of subsidiaries located in the same area, with the condominium consisting of six neighborhoods identified by the following names: Almendro, Bambú, Ceiba, Dalia, Espavel, and Ficus, which may manage their own budget according to their needs, but must always consider the contribution they must make to the Main Condominium. - **VISITOR:** Person present in the Condominium, under the responsibility of one or more Owners or Tenants. **Five. Purpose:** The purpose of the Condominium is **RESIDENTIAL – COMMERCIAL - TOURIST – EDUCATIONAL FOR PRIMARY SUBSIDIARY PROPERTIES.**

INDIVIDUALIZED, meaning that their subsidiaries will be used according to their nature, construction plans, and these regulations, and it is expressly prohibited for the CONDOMINIUM'S SUBSIDIARIES to be used for purposes other than those indicated. **Six. Subject to Condominium Rules**. The Condominium is a condominium development of Individualized Primary Subsidiary Properties. The Individualized Primary Subsidiary Properties one, two, three, G seven hundred and one, G seven hundred and two, G seven hundred and three, G seven hundred and four, G seven hundred and five, and G seven hundred and six, for residential, commercial, and tourist use, and subsidiary property G seven hundred and one, for commercial and educational use, may form sub-condominiums, as approved by the State institutions and competent bodies, and their transformation into sub-condominiums is expressly authorized without the need for prior express agreement by the Condominium Owners' Meeting. These Regulations and the approved plans of the Main Condominium are considered, for all purposes, an integral part of the Regulations of any Sub-condominium in terms of use, coverage, gardens, location of infrastructure, stages of development, location of common areas and subsidiary properties, facilities for public services, and any other information contained therein. **Seven. Condominium Regulations.** The Condominium Regulations may be amended by the quorum indicated by law. The Owners' Meeting and the Administration may issue other regulations, which may be approved or amended by the Meeting by a simple majority of votes, on the understanding that such regulations do not need to be registered in the National Registry, nor shall they constitute an amendment to these Regulations, but shall complement a n d clarify them.

CHAPTER II. DESCRIPTION OF THE CONDOMINIUM. Eight. About the Condominium: The condominium is a residential, commercial, tourist, and educational condominium, consisting of TWO HUNDRED AND NINETY-ONE individualized primary subsidiary properties. Subsidiaries number one, two, three, G seven hundred and two, G seven hundred and three, G seven hundred and four, G seven hundred and five, and G seven hundred and six are intended for residential use , commercial, and tourist use; G seven hundred and one is for commercial and educational use; and the rest of the properties are for residential use, with the exception of property A one hundred and fifty-seven, which, due to its location, may be used for commercial purposes. Sub-property number G seven hundred and one is intended for commercial-educational use, as shown on the plans. Sub-properties numbered A one hundred and one to A one hundred and fifty-eight inclusive, numbered B two hundred and one to B two hundred and fifty inclusive, number C three hundred and one to C three hundred and forty-nine inclusive, number D four hundred and one to D four hundred and thirty-nine inclusive, number E five hundred and one to E five hundred and forty-six inclusive, and number F six hundred and one to F six hundred and forty-two inclusive are intended for residential use, as shown in the construction plans. All the Subdivisions that belong exclusively to the respective owner; as well as the common property and areas that are owned by all the condominiums as prescribed by law, the common areas being those described as such in the deed of incorporation, as well as the elements defined by the Law Regulating Condominium Property and those that by their very nature or purpose have the status of common property, over which the owner of each Branch shall have rights proportional to the percentage represented by the area allocated to their Branch within the condominium, without any owner being restricted in the rational use and enjoyment of such property. Residential Subdivisions that belong exclusively to the respective owner may not have a use or carry out an activity other than single-family residential, except for Subdivision A one hundred and fifty-seven, which, due to its location, may carry out commercial activity, and therefore under no circumstances may they carry out commercial activity of any kind, or any activity other than residential. The Assembly shall reach more specific agreements in cases of permissible activities for which further clarification is required, such as teleworking, among others. **Nine. Private Property:** Private property is that which is for the exclusive use of its owners, such as SUBSIDIARIES and their accessories, as well as the spaces necessary for use that are not identified by the LAW, the REGULATIONS to the LAW, the REGULATIONS, the deed of assignment to the condominium property regime, or Assembly Agreements as Common Property. **Ten. Common Property:** In addition to what is established by the Law and its Regulations, without this being an exhaustive list, the following are considered common property: a) The land on which the condominium is located. b) The foundations, load-bearing walls and party walls, roofs, galleries, lobbies, and stairways, as well as access, exit, and internal circulation routes, mezzanines, roofs, and eaves of the building. c) The spaces assigned to the personnel responsible for the administration, maintenance, or security of the CONDOMINIUM. d) The areas and facilities for central services such as electricity, lighting, telephony, gas, water, refrigeration, tanks of all kinds, water pumps, wells, water treatment plants, and others. e) The equipment acquired by the condominium for the improvement, maintenance, and conservation of its common and recreational areas. f) Pipes, ducts, or conduits for the goods and/or services enjoyed by the condominium owners, such as air conditioning, air and/or moisture extraction ducts, garbage ducts, water pipes, electrical, mechanical, communication, and/or any other type of networks that are

required for the proper functioning of the CONDOMINIUM. g) Existing wells or those that may come into existence, as well as their equipment, recreational areas, areas intended for common use or to provide services to the condominium, their accessories and furniture, as well as any property or service of the condominium, except for wells existing in private areas, which shall be for the exclusive use of the owner of the respective unit. h) All those that may be for common or restricted common use, as well as all those goods and/or services intended for common use and well-being, and in general the areas identified as such in the construction plans and in the deed of incorporation of the Condominium, the property acquired by the Condominium or the Administration for the use or enjoyment of the majority of the condominium owners, in addition to those established by law. Likewise, and in accordance with the Law, common property shall be those items that the Condominium Owners' Meeting classifies as such, even if they are not so by their nature, or those that correspond to principles of necessity, safety, health, access, decoration, and conservation of the CONDOMINIUM, whose operation is authorized with the approval of these Regulations. All work to be carried out in the common areas of the CONDOMINIUM must have the prior, express, and written authorization of the CONDOMINIUM Administration, and must comply in full with the guidelines of the latter and these Regulations, as well as any other applicable provisions in the CONDOMINIUM. If required by the nature of the work to be carried out, it must also have an insurance policy that guarantees or covers any damage and/or harm that may arise from the work to be carried out, all to the satisfaction of the Administration. **Eleven. Neighborhoods:** As indicated in the definitions section, in order to achieve greater efficiency and involvement of the owners in the development and maintenance of the Condominium, the residential branches that comprise it have been divided into six neighborhoods, which are as follows: - **Almendro:** comprising branches A one hundred and one to A one hundred and fifty-eight inclusive; - **Bambú:** comprising branches B two hundred and one to B two hundred and fifty inclusive; - **Ceiba:** comprising branches C three hundred and one to C three hundred and forty-nine inclusive; - **Dalia:** comprising branches D four hundred and one to D four hundred and thirty-nine inclusive; - **Espavel:** comprising branches E five hundred and one to E five hundred and forty-six inclusive; and - **Ficus:** comprising branches F six hundred and one to F six hundred and forty-two inclusive. **Twelve. Common areas and property for general use:** It is hereby established that the common areas of this Condominium, which are not for restricted use, shall be considered common areas for each and every one of the condominium owners and any sub-condominiums that may be established in the Condominium, and therefore may be used by the residents of the Condominium, who in their use must comply with these Regulations and the other regulations in force in this condominium, including but not limited to those issued by the Administration. In addition to the above, and as established by the Law and its Regulations, without this being an exhaustive list, the following are considered common property for general use: a) Equipment acquired by the condominium for the improvement, maintenance, and conservation of its common and recreational areas, the Club House areas, gym, jacuzzi, terraces, tennis courts, co-working space, and others that may be for common or restricted use, as well as all vehicular and pedestrian accesses, pedestrian paths, vehicular and pedestrian bridges, parking spaces for cars and bicycles, and any other infrastructure necessary for mobility. b) The Machuca River Park, which includes sports facilities, permaculture spaces, forests, trails, lakes, the river, and swimming pools, any

Infrastructure for boat use and bird watching, as well as for sitting in the forest; an operations and recycling center; a yoga room; a women's empowerment center; a playground/play area; parking areas; among others. c) The park and green areas in the center of the village, including permaculture areas, green spaces, seating areas, an amphitheater, a youth space, a playground/play area, a zipline, among others. d) All those goods and/or services intended for common use and well-being, and in general the areas identified as such in the construction plans and in the deed of incorporation of the Condominium, the goods acquired by the Condominium or the Administration for the use or enjoyment of the majority of the condominium owners, in addition to those established by law. e) Likewise, and in accordance with the Law, common property shall be those assets that the Condominium Owners' Meeting qualifies as such, even if they are not so by their nature, or those that correspond to principles of necessity, safety, health, access, decoration, and conservation of the Condominium, whose operation is authorized with the approval of these Regulations. **Thirteen:** All work to be carried out in the common areas of the Condominium must have the prior, express, and written authorization of the Condominium Administration, and must comply in full with the guidelines of the latter and these Regulations, as well as any other applicable provisions in the Condominium. If required by the nature of the work to be carried out, it must also have with an insurance policy that guarantees or covers any possible damage and/or harm that may arise from the work to be carried out, all to the satisfaction of the Administration. **Fourteen: The nature reserve:** The forest located in the northern and eastern areas of the main property, as defined in the approved plans of the condominium, is considered a forest reserve for the purposes of the condominium. This area is common property and therefore its maintenance is shared by the condominium, so its conservation shall be the responsibility of each condominium owner and the condominium as a whole. Although the reserve is a common area, its sole purpose shall be to serve as a habitat for the forest's flora and fauna, and never as a recreational area for condominium owners. The Condominium Owners' Assembly may not change its use, nor may it sell and/or lease the reserve areas to third parties, nor give them a purpose other than that indicated herein. **Fifteen: Educational, commercial, and tourist areas:** The owners of commercial subsidiaries shall build, maintain, and operate the commercial, tourist, and educational areas, assuming this responsibility directly or relying on third parties with the necessary expertise. Therefore, they shall not contribute to expenses related exclusively to the residential subsidiaries, nor shall they be subject to the construction regulations established herein. Therefore, their projects shall NOT be approved by the Construction Commission or Committee, nor shall they require the approval of the Condominium, its Administration, or the Owners' Assembly, but they must always comply with the provisions regarding setbacks, density, and coverage established in the construction plans and these regulations. Residential condominium owners shall not be responsible for the maintenance of these commercial, educational, and tourist areas, the expenses of which are not part of the condominium budget. These areas are subsidiary properties numbered G seven hundred one to G seven hundred six, inclusive, in which, according to their intended use, the following activities may be carried out: a) Subsidiary property G seven hundred one: It is intended for commercial and educational purposes, and therefore commercial activities of all kinds may be carried out there, including educational centers, which include educational buildings, play areas, dining rooms, sports facilities, and green spaces, among others, always with the primary purpose of commercial and educational use.

Educational; b) Individualized Primary Subsidiary Properties numbers one, two, and three: These properties are for commercial, residential, and tourist purposes, so any of these activities may be carried out on them, with commercial activities understood to mean any lawful commercial activity that generates income for the owner, regardless of its nature, such as agriculture, livestock, and any other activity that allows the use of the land on these subsidiary properties.

c) Subsidiary property G seven hundred and two: This property is intended for commercial, residential, and tourist use, and therefore any of these activities may be carried out on it, including but not limited to an art village, which will include spaces such as a theater, coworking space, art galleries, commercial spaces for artists and musicians, cooking spaces, restaurants, gardens, and public spaces, among others; d) Subsidiary properties G seven hundred and three and G seven hundred and four: These properties are intended for commercial, residential, and tourist use, and therefore any of these activities may be carried out on them; e) Subsidiary property G seven hundred and five: This property is intended for commercial, residential, and tourist use, and therefore any of these activities may be carried out on it; f) Subsidiary property G seven hundred and six: It has a commercial, residential, and tourist purpose, so any of these activities can be carried out on it, including but not limited to a retreat center, which has its own entrance and operates independently from the rest of the condominium; g) Subsidiary property A one hundred and fifty-seven may be used for commercial purposes due to its location. The Condominium Owners' Meeting may reach an agreement whereby the owners of subsidiary properties G seven hundred and one to G seven hundred and six inclusive may voluntarily contribute to the maintenance of the following general access assets, according to the access and use they give to each of them, noting that due to their configuration, subsidiary properties numbers one, two, and three are not subject to this commitment, even though they can freely enter the Machuca River bridge at no cost:

a) Vehicle access, pedestrian paths, vehicle and pedestrian bridges, parking spaces for cars and bicycles, and any other infrastructure necessary for mobility outside the restricted areas of each of the six communities. b) The park and green areas in the center of the town. c) The forests, trails, lakes, river, swimming pools, and any infrastructure for boating, bird watching, and sitting in the forest within the Machuca River Park. **Sixteen. Rights of Way:** The Condominium expressly grants rights of way and/or easements through the common areas to all government and local entities that govern and regulate basic public services, such as the Costa Rican Electricity Institute (ICE), the Costa Rican Water and Sewerage Institute (A y A), Radiográfica Costarricense S. A. (RACSA), and any other info-communications or general services company of the Condominium that have been previously approved and contracted by the Administration or by the Condominium Owners' Association, to carry out the work necessary for the operation and maintenance of the common areas. **CHAPTER III: REGULATIONS AND PROVISIONS REGARDING THE COMMON AREAS AND PROPERTY OF THE CONDOMINIUM. SECTION I . GENERAL REGULATIONS REGARDING COMMON PROPERTY**

: Seventeen. Relationship Between Private Property and Common Property: Except as indicated in these regulations, no condominium owner may be restricted in the reasonable use and enjoyment of common property, respecting the distinction between common property for general access or use and common property for restricted access or use, nor may any condominium owner claim greater rights to the enjoyment of such property by virtue of having a greater share of the private area than other condominium owners, in accordance with the provisions of the law. It is hereby established, by the conceptualization of the

condominium, that the "commercial-educational" and "commercial-residential-tourist" subsidiaries may not use the property and areas for residential use, and therefore shall not contribute to their maintenance. The rights of each condominium owner in the common areas may not be alienated, encumbered, seized, or transferred separately from the ownership, as they are inherent to the ownership of the subsidiary property and, consequently, inseparable from it. The financial responsibility of the condominium owner for the common property shall be determined with respect to the co-ownership coefficient in the private area built that represents their subsidiary property in relation to the total area of the Condominium, as well as those established by the Administration, and the waiver of the use and enjoyment of the common property, whether express or tacit, does not relieve the co-owner of their obligations regarding the conservation and reconstruction of said property, or the payment of maintenance fees, as well as any obligation derived from the Condominium Property Regime, as the responsibilities of the co-owners regarding the common property are inalienable. Common property for use and enjoyment may be leased under any modality with the prior agreement of the Condominium Owners' Assembly or if these regulations establish such a power. **Eighteen. Use and Enjoyment of Common Property:** Owners are obliged to ensure the proper use of the common property of the Condominium, as well as to notify the Condominium Administrator of any situation, fact, or act that endangers the safety and preservation of such property. All condominium owners, lessees, occupants, or possessors, or any natural or legal person occupying an ancillary property, regardless of their title, shall be liable for any damage caused to common property through their fault or negligence, or by their tenants, employees, dependents, or visitors, and shall be responsible for covering the costs incurred in their repair, failing which the penalties provided for in these Regulations shall apply. Likewise, all co-owners, tenants, occupants, or possessors, under any title, shall refrain from any act, even within their property, that prevents or renders less effective the operation or use of the common areas. **Nineteen. Improvements to Common Property and Maintenance Work:** In accordance with Article 30 of the Law, it is the responsibility of the Administrator appointed by the Condominium Owners' Meeting to care for and supervise the common property and services, to attend to and operate the facilities and general services, and to perform all acts of maintenance of the Condominium. Likewise, the Condominium Owners' Meeting may issue the Administrator with the relevant guidelines for the performance of his duties, and in particular regarding the care of common property. Improvements to common property shall be approved by the Condominium Owners' Meeting. Similarly, neighborhoods may approve improvements to their common areas, on the understanding that such improvements shall be covered by the owners of the respective neighborhoods. The condominium owners, tenants, occupants, or possessors, in any capacity, are obliged to allow and tolerate any inconvenience caused by maintenance work in the common and private areas, as well as for their conservation and repair. Consequently, access and passage of persons responsible for supervising, directing, and executing such work shall be permitted in all areas of the Condominium involved in maintenance work. The Administrator, for its part, shall take the necessary measures to ensure that the execution of maintenance work causes the least possible inconvenience or damage. **Twenty. Use and Enjoyment of Common Property.** Except as provided in these regulations, the Regulations, and those established by the Condominium Assembly and/or the Administration in the exercise of its powers, no condominium owner

may be limited to the rational use and enjoyment of common property and goods, so no one can claim to have a greater right to enjoy them, except as indicated for "commercial-educational" and "commercial-residential-tourist" subsidiaries, which may not use the common areas and property for residential purposes, unless they reach an agreement with the Condominium defining the fee they will contribute to the maintenance of the areas to be used. The rights of each condominium owner in the common property and assets may not be alienated, encumbered, seized, or transferred separately from the ownership of their subsidiary, as they are an inherent right thereof, such that even if the use of the subsidiary has been transferred in any manner, including, but not limited to, leasing, the owner may not make use of the common property and assets of the condominium, but rather such use shall correspond to whoever has the legitimate use of the respective subsidiary. but not limited to leasing, the owner may not make use of the common property and assets of the condominium, but rather such use shall correspond to the person who has legitimate use of the respective subsidiary. Similarly, it is established that the suspension by the condominium administrator of the services or use of the common property and areas due to non-payment of condominium obligations shall not constitute a limitation on the use of the common areas and services, such suspension being expressly authorized by these regulations and accepted by all purchasers of subsidiaries in the condominium, as well as by the persons residing therein. **Twenty-one. Regulations for Use.** The use of the aforementioned common property and areas of the condominium shall be regulated by the respective Regulations and/or Manuals specific to each area issued by the Administration and/or approved by the Condominium Owners' Assembly, or the Condominium Owners' Board, and the Neighbourhood Committees for their common areas. These regulations may even, if deemed in the interests of the condominium, empower the Administrator to eventually grant or transfer the administration of a specific area to a third party outside the Condominium to operate it, with the Administrator being empowered to sign and formalise any agreement reached for the administration of the common areas. Similarly, the Administration shall be empowered to issue the necessary regulations for the holding of events in the common and/or private areas, as well as to regulate the reservation procedure, hours of use, maximum occupancy and noise levels, care of common property and common areas, as well as those necessary for cleaning and maintenance work once the event has ended. The Administration or Board of Condominium Owners may establish special regulations, including, but not limited to, the requirement of security deposits or area reservations, which, if established, will be used to cover any damage to the facilities and additional cleaning expenses. **SECTION II: SPECIFIC REGULATIONS FOR COMMON PROPERTY.**

Twenty-two. Regarding regulations for common areas for general use: Common areas for general use include streets, paths, and infrastructure for mobility, Machuca River Park, the park and green areas in the town center, among others. All condominium owners, lessors, sublessors, occupants, or residents of one of the condominium's subsidiaries, duly accredited as such by the Condominium Administration, shall have the right to use them for social activities in which they are directly involved, with the understanding that, unless expressly authorized in advance by the Assembly, such activities may not be of a commercial, religious, and/or political nature. The prohibition of "commercial-educational" and "commercial-residential-tourist" affiliates is reiterated. They may not use the common areas or property for residential use, unless they reach an agreement with the Condominium for their use. In order to safeguard the peace and harmony of the condominium, as well as to obtain a fair distribution among the condominium owners of the common property of general access, the Assembly shall make agreements to offer

a series of rules on the following aspects of the use of these areas: a) Hours of use. b) Where relevant, procedures for making and canceling reservations; c) Where relevant, the obligations of the person making the reservation; d) The number of people authorized to use the area at the same time; e) The use and obligations of the user; f) The care of equipment and infrastructure; g) Cleaning and hygiene rules for each user; h) Appropriate clothing; i) Agreements for use during maintenance; j) Care of nature in the spaces; k) Entry and accompaniment of minors; l) Access of pets; m) Security measures; n) Penalties associated with failure to comply with the agreements made; o) Other measures for coexistence in the space; p) Other agreements to ensure harmony. **Twenty-three. Regarding regulations for restricted-use common areas:** The restricted-use common areas of each neighborhood, as detailed in these regulations and construction plans, include the clubhouse, swimming pool, playground, yoga room, permaculture spaces, and parking spaces, among others. All condominium owners, lessors, sublessors, occupants, or residents of one of the neighborhood's subsidiaries in which the common areas for restricted use are located, duly accredited as such before the Condominium Administration, shall have the right to use them for the purpose of carrying out social activities in which they are directly involved and with the understanding that, unless expressly authorized in advance by the Assembly, they may not be of a commercial, religious, and/or political nature. The Assembly of condominium owners, by simple majority, may decide that condominium owners have the right to use the common areas of neighborhoods other than the one in which they reside, which agreement shall also establish the rules for reservation and use. In order to safeguard the peace and harmony of each neighborhood, as well as to obtain a fair distribution among the condominium owners of the common property with restricted access, the Assembly shall make basic agreements to offer a series of initial rules on the following aspects of the use of these areas in all neighborhoods. Each neighborhood shall have the right to adjust these rules for the common areas of its neighborhood. Agreements shall be defined on the following aspects for each of the common areas: a) Hours of use; b) When relevant, procedures for making and canceling reservations; c) If relevant, the obligations of the person making the reservation; d) The number of people authorized to use the area at one time; e) The use and obligations of the user; f) The care of equipment and infrastructure; g) Cleaning and hygiene rules for each user; h) Appropriate clothing; i) Agreements on use during maintenance; j) Care of nature in the spaces; k) Entry and accompaniment of minors; l) Access of pets; m) Safety measures; n) Penalties associated with failure to comply with the agreements made; o) Other measures for coexistence in the space; p) Other agreements to ensure harmony. **Twenty-four. Restricted areas and property:** As this condominium is divided into clearly identified neighborhoods according to the designs provided by the Developer, which will be incorporated as an Annex to these regulations, it is established that the common property located in each neighborhood will be common property with restricted access, and therefore will be for the exclusive use of the inhabitants, residents, and visitors of that neighborhood, According to the approved plans, the following restricted use zones or areas exist: a) Almendro recreational area for the exclusive use of FFPI A one hundred and one to FFPI A one hundred and fifty-eight; b) Bambú recreational area for the exclusive use of FFPI B two hundred and one to FFPI B two hundred and fifty. c) Ceiba recreational area for the exclusive use of FFPI C three hundred and one to FFPI C three hundred and forty-nine. d) Dalia recreational area for the exclusive use of FFPI D four hundred and one t o FFPI D

four hundred and thirty-nine. e) Espaveles recreational area, for the exclusive use of FFPI E five hundred and one to FFPI E five hundred and forty-six. f) Ficus recreational area for the exclusive use of FFPI F six hundred and one to FFPI F six hundred and forty-two. Without prejudice to the Assembly establishing new restricted-use areas in the future, in accordance with the construction plans, the recreational areas of each neighborhood are restricted-use areas. These recreational areas include the following items: a) The clubhouse or main building of each neighborhood's common area, which includes an open space for meetings, a communal kitchen, dining area, and bathrooms/changing rooms. b) The swimming pool, including the deck and accompanying furniture. c) The yoga room. d) The playground/play area. e) Permaculture spaces, including the dome garden, fruit forests, and composting station. f) Parking spaces for both cars and bicycles. g) Other spaces that may exist within each neighborhood, including outdoor movie theaters, lookout points, among others. The beneficiaries of these areas shall bear the cost of maintenance and upkeep exclusively, with the beneficiaries having the right to use them, without the possibility of other people other than the beneficiaries of these areas using them, unless the neighborhoods agree otherwise in writing. Similarly, the protection zones adjacent to branches one, two, and three are considered restricted areas, which shall be for the exclusive use of said branches, with their owners being responsible for the maintenance of these areas, and the use of these areas by persons outside these branches not being permitted. **Twenty-five. Additional regulations for common areas and property:** The Condominium Owners' Association, or in its absence, the Administration, shall be empowered to establish any other regulations for the use and enjoyment of the common areas, without this implying any change to these regulations, and which, once approved, shall be mandatory. **CHAPTER V: RIGHTS AND OBLIGATIONS OF OWNERS. SECTION I. GENERAL PROVISIONS. Twenty-six.**

The Owners. The Owners shall have exclusive ownership of their Unit(s) and shall be entitled to transfer, encumber, and dispose of them by means of any type of act and/or contract, subject to the limitations established by law and these Regulations, as well as other condominium regulations. They may also lease or dispose of their property rights, always in compliance with the law, these Regulations, and other applicable and valid condominium regulations. The co-owners shall use their subsidiary property in accordance with the purpose set forth in this deed of incorporation or as subsequently and duly approved by the Co-owners' Meeting and the respective institutions, and in accordance with the general purpose of the Condominium. The subsidiary properties may not be used for purposes contrary to the provisions of these Regulations, the law, morality, or good customs, nor may they be used for any purpose other than that expressly agreed upon. **Twenty-seven. Residents and Visitors:** Residents and visitors of the Condominium, as well as any person who enters it, shall have the same obligations as the Owners and shall comply at all times with the condominium regulations in force and applicable, understanding that they shall be jointly and severally liable for any damages, losses, or infringements that they may incur due to failure to comply with said regulations. **Twenty-eight. Co-ownership of Common Property.** It is understood that the provision of the AFFILIATE carries with it the right of co-ownership of the property of the Condominium, as these are inherent to it. The purchasers of the respective rights shall be obliged to respect these regulations and other condominium regulations, the general purpose of the Condominium,

their common property and, in particular, that of each of the subsidiary properties. All owners who acquire a Subsidiary Property or occupy a Subsidiary of the Condominium shall be required to send their contact information to the Administration (Contact Registry), indicating at least their full name, telephone numbers, and email address, the latter being the official means designated by the Owner or occupant of the Subsidiary to receive all communications or notifications from the Condominium and these regulations, including but not limited to notices, account statements, warnings, reprimands, penalties, and any other communication related to the Condominium. Registration to receive communications and notifications must be made within eight business days from the date of signing the deed of purchase of the Branch Property, lease agreement, or document granting the right to occupy the Branch. Failure to do so will result in any communication made at the Branch or the condominium's administrative offices being considered valid. In the case of sub-condominiums, the official channel of communication shall be the sub-condominium administration, and therefore the obligations established herein shall be the responsibility of the administrator of each sub-condominium, who shall have the same obligations as those established herein, and shall keep the corresponding Register of Owners and shall be obliged to forward and communicate to the owners of sub-filiales any communications made to them by the administrator of the main condominium. **Twenty-nine. Duty to communicate the transfer of a subsidiary.** Prior to transferring ownership, the interested party must notify the Administrator in writing, who, within the following five calendar days, must certify whether or not the condominium obligations, existing debts, fines, and applicable interest are up to date. In the event of transfer, lease, or assignment under any legal form of the use and enjoyment of a specific subsidiary, the following regulations must be followed: (i) Notify the Administrator in writing and provide the certification or statement proving the transfer, lease, or assignment, as applicable, so that the Administration can make the corresponding registration. (ii) Any deed of transfer, assignment of rights, lease agreement, or any other document that serves to prove the transfer, lease, assignment of use, or entitles one or more persons to live in the condominium must contain an express statement that the future occupant of the unit is aware of, accepts, and agrees to abide by the Rules and Regulations and other regulations of the condominium. The same obligation shall apply in cases where the subsidiary is in the name of a corporation and there is a partial or total transfer of shares of said corporation, so that the purchaser is aware of the actual status of the subsidiary or subsidiaries in relation to their condominium obligations; since it will be the respective subsidiaries that will be liable for any condominium obligations, such that if the purchaser fails to fulfill the legal duty to request the aforementioned certification, they acknowledge that the subsidiary or subsidiaries they are acquiring will be liable for any existing debts, including those incurred prior to the transfer or assignment. **Thirty. Services in the Subsidiary.** The owners may establish services for their exclusive use at their own expense, provided that they do not harm or disturb the peace of the other owners or third parties, or that they are not detrimental to the other owners or that they do not damage or affect the aesthetics or harmony of the CONDOMINIUM in the opinion of the Condominium Owners' Association or the Administrator. They must use their property in accordance with its intended purpose. Owners may not use or allow their BRANCH to be used for any purpose other than that established by the

deed of assignment to the condominium ownership regime and these REGULATIONS. **Thirty-one. Repairs**. All owners are obliged to carry out on their property and at their own expense, with the urgency required by the case, any urgent and necessary repairs, the omission of which may cause damage or difficulties to the neighbors or to the structures of the condominium and its building, its solidity, safety, aesthetics, health, and appearance. If this is not done within a reasonable time, to be defined by the Administration according to the situation in question, the Administrator shall be empowered to carry out the repair or necessary maintenance, and may enter the property for this purpose, with the condominium owner being liable for the cost, the penalty for breach of these regulations, and any consequential damages. Similarly, all OWNERS must allow access to their UNIT in order to carry out the necessary maintenance or repairs to the CONDOMINIUM. It is the obligation of all condominium owners or residents to keep their windows, balconies, facades, and other private or common areas in perfect condition, in such a way that does not affect the safety, appearance, or aesthetics of the condominium. **Thirty-two. No Disturbance.** Owners or those who derive their rights from them must refrain in all cases from performing acts that prevent or diminish the use or enjoyment of common areas, their facilities, and/or services. Likewise, they must avoid causing inconvenience to other residents through the improper use of their Affiliate o r common areas, being jointly and severally liable with their affiliate for any violation of these regulations, the condominium regulations, and the law. **Thirty-three. Obligation to Contribute to Common Expenses.** All owners shall be obliged to contribute, in accordance with the provisions of these regulations, to common expenses, insurance, taxes where applicable, and other exceptional budgets, on the understanding that any payment made by the condominium owners shall be used in the first instance to pay for any damage caused to the condominium through the fault or negligence of the condominium owner or their family, subsequently to the payment of any interest, penalties, and/or fines pending payment, after the payment of extraordinary fees, and ultimately to the payment of ordinary fees, from the oldest to the most recent. With the exception of obligations incumbent upon the Developer, fees that are not paid on time will result in the owner incurring a penalty interest equal to three percent per month on the amount owed from the tenth day following the date on which payment was due and for the duration of the delay, in addition to the payment of both costs in the event of eventual enforcement, with the Condominium Owners' Meeting being able to modify, by simple majority, the penalty established herein or the payment date. The subsidiary property shall be affected as collateral, on a preferential basis and from its inception, for any breach of the financial obligations that the owner or co-owner may have with the condominium. The fees shall be paid in advance on a monthly basis. **Thirty-four. Duty to Allow Work on the Subsidiary Property.** All owners are obliged to allow repair work to be carried out on common elements where required by the CONDOMINIUM. The condominium administration has a right of way over all subsidiary properties so that it and/or the personnel it hires may access the common or private elements that require inspection, maintenance, repair, or replacement. **Thirty-five. Compliance with rules:** All condominium owners are obliged to contribute to the promotion, maintenance, safety, peace, tranquility, and beautification of the condominium, and must maintain good habits and customs, both personal and those of their residents, collaborators, suppliers, and guests.

undertaking at all times to comply with the condominium regulations in force, the agreements adopted by the Condominium Owners' Meeting, the Administration, and the communities themselves. **Thirty-six. Damage to Common Areas and Property**. When damage to common property or areas is caused by the fault, negligence, or recklessness of any owner or person occupying the Unit on their behalf, and the latter does not cover it in the manner and within the time requested by the Administration, the Administrator is authorized to carry out the repair and the cost thereof shall be charged in full to the Branch in the next maintenance fee, with an additional surcharge of twenty-five percent for administrative expenses, all of which shall form part of the condominium fee payable. If this amount is not paid, the member will be considered in default, their services and access to common areas will be immediately suspended, and collection will be pursued through the appropriate channels. **Thirty-seven. Duty to Comply with the Obligations of the Law.** The lease or transfer of rights by the owner does not exempt them from complying with each and every one of the obligations imposed by the Law, the Condominium Deed, these Regulations, as well as the rules and regulations issued by the Administration and/or Condominium Owners' Assembly, but it is hereby stated that if another person resides in the unit, the owner shall not be entitled to use the common areas and property, as it is understood that this right has been transferred to the occupant of the unit. **Thirty-eight. General Rights and Obligations:** In addition to the rights and obligations established by law and these Regulations, the co-owners, residents, tenants, and visitors of the Condominium must comply with the following regulations: a **) Use and purpose of subsidiary properties:** Subsidiary properties may only be used in accordance with the purpose set forth in the plans approved by the institutions, the deed of incorporation, and these Regulations, as well as applicable local regulations. Ancillary properties may not be used for purposes contrary to the provisions of these Regulations, their plans, the Deed of Incorporation, the law, morality, or good customs, nor may they be used for any purpose other than that expressly agreed upon. b **) Private services:** Condominium owners may establish services for their exclusive use at their own expense, provided that they do not harm or affect the condominium, other condominium owners, or the common areas of the Condominium. The internal maintenance of the subsidiaries shall be provided by each co-owner, lessee, occupant, or possessor under any title. c**) Maintenance of subsidiaries:** Co-owners are responsible for maintaining, cleaning, and decorating the private internal areas corresponding to the subsidiary properties. The maintenance of the road surface and base of the parking lots, streets, and internal accesses of each building and subsidiary property as part of the private area shall be the responsibility of each condominium owner, as well as the care, irrigation, and maintenance of the green areas and gardens corresponding to their private area; d**) Prohibited acts:** Condominium owners may not engage in any act or omission that disturbs the peace of other condominium owners or their private area, or that compromises the aesthetics, solidity, safety, health, or comfort of the Condominium, or that damages or potentially damages the infrastructure of the Condominium and its common areas or that of other condominium owners. Likewise, no temporary structure, trailer, basement, tent, storage room, garage, stable, or any other external construction may be used as a residence on any subsidiary or sub-subsidiary property. Recreational trailers, boats, and any other type of trailer must be parked or stored on the subsidiaries behind the building line and behind the side gate of a residence or in the garage. No open carport may be used for the storage of any object or vehicle other than motor vehicles; e**) Traffic**

Vehicles: Vehicles may not be driven on the streets of the Condominium at speeds exceeding twenty-five kilometers per hour. Administration or security company employees are authorized to measure the speed of vehicles with a specialized instrument for this purpose and report speeding within the Condominium to the Administrator. f**) Entry of Domestic Workers:** Domestic workers hired by each condominium owner shall not be considered external service personnel or service providers for the purposes of entering the Condominium. Therefore, each condominium owner shall be responsible for informing the Administration of the name, identification, and entry schedule of their domestic workers so that they may enter the Condominium regularly at the time required by each condominium owner. Any changes made by the Condominium Owner in the hiring of their domestic workers must be reported immediately to the Administration so that the respective entry information can be updated; g**) Lighting.** The internal lighting of the Subsidiary Properties shall not cause excessive glare or dazzle, nor shall it direct the beam of light to neighboring properties, including common areas; h**) Environmental Commitments:** Condominium owners, residents, and visitors to the Condominium and the Condominiums are obligated to comply with the environmental commitments made by the Condominium, applying appropriate practices in their relationship with and use of the Condominium's natural resources. **Thirty-nine: Prohibited Substances and Materials:** It is prohibited to keep within the residential subsidiaries any type of substance or product, chemical or natural, that produces a bad odor, is flammable, or may represent any danger to the well-being and safety of people or the buildings and other structures a n d works of the Condominium. Therefore, the possession of explosive, flammable, or unhealthy materials that produce bad odors, smoke, or any nuisance, or that may represent a danger to health in the residential units is prohibited. **SECTION II. ENVIRONMENTAL PROVISIONS. Forty. Obligations of Condominium Owners for the Conservation of the Environment:** All condominium owners, tenants, residents, occupants, or possessors, in any capacity, are obliged to contribute to the promotion and maintenance of environmental conditions, to care for the natural reserve and natural life, and to maintain artificial environments that allow for the vital and health needs of residents to be met, as well as the good customs and hygiene habits of their workers. All condominium owners, tenants, occupants, or possessors, in any capacity, of the properties belonging to the Condominium are obliged to respect the environmental commitments governing the Condominium and dictated by the Administration. **Forty-one. Regulations for Lower Energy Consumption.** With the aim of contributing to environmental sustainability and promoting lower energy consumption within the condominium, the following regulations are established and are mandatory for residential properties:

a) Common areas may only use low-energy LED lighting or any other low-energy lighting, and subsidiaries should ideally comply with this regulation; b) Air conditioning units installed in both common and private areas must use technologies that guarantee lower energy consumption and environmental impact; c) Appliances used in the subsidiaries must have the Energy Star seal or certificate or its equivalent; d) All equipment installed in the subsidiaries must respect their load capacity and, as indicated, must be certified as highly energy efficient. The Administration and/or the Condominium Owners' Meeting may implement additional regulations, which shall be mandatory a n d binding. **Forty-two.**

Use of Solar Panels. The use and implementation of solar panel or energy-saving systems is permitted in the condominium and its subsidiaries. For the installation of such systems, approval must be obtained from the Construction Commission, complying with the same procedure, where applicable, established for the construction of works in the condominium, this regulation not being applicable to subsidiary properties numbers one, two, and three. **Forty-three. Other energy efficiency and resilience measures.** The Condominium Owners' Assembly may approve measures and systems involving all condominium owners in order to promote greater energy security, resilience, and sustainability. This includes, but is not limited to, the possibility of investing in the necessary infrastructure to establish an independent micro-electricity grid (including monitoring, control, and protection equipment) for common use in the internal distribution of electricity, and establishing a relationship with an electricity resource aggregator, approved by the national authorities, that can operate it. If a microgrid is implemented, the Condominium Owners' Assembly shall establish appropriate regulations in line with national legislation on the matter. **Forty-four. Water Conservation.** All condominium owners, tenants, residents, occupants, or possessors, in any capacity, are required to ensure the conservation of water resources by installing low-water consumption devices in their homes. They shall also ensure the maintenance and conservation of the existing river. In order to contribute to the reduction of water consumption within the condominium, the following regulations are established: a) The Administration and the owners must ensure the proper functioning of the electromechanical infrastructure of the condominium and its subsidiaries, exercising strict control over them and avoiding, as far as possible, the existence of water leaks that generate greater consumption of water resources, with the repair of all leaks being mandatory; b) High-efficiency, low-water-consumption faucets, sanitary fixtures, showers, and equipment shall be installed in both the common areas of the condominium and its subsidiaries. c) The Administration may set average consumption levels for each subsidiary, and any subsidiary with consumption above the average will be charged an increase in water consumption at a rate defined by the administration, which may also establish other mandatory regulations. The condominium administration may promote activities aimed at conserving water resources in the condominium and may issue additional regulations that shall be mandatory for all persons in the condominium. **Forty-five. Wastewater Treatment.** All residential subsidiary properties of the CONDOMINIUM and any sub-subsidiaries, with the exception of subsidiary properties numbers one, two, and three, which shall not be subject to this obligation, must have a BIONEST brand wastewater treatment system that guarantees the proper treatment of the wastewater system of each subsidiary. If, for any reason, this company ceases to provide the service in the country, the Condominium Owners' Meeting shall decide on a replacement system to be implemented. If, in the future, the Meeting considers that there are other systems that are equal to or better than BIONEST, it may agree to include them as an alternative to BIONEST. It is understood that it is not sufficient to implement the system; it must also be properly maintained to ensure its correct operation. Failure to have the system or to maintain it properly will constitute a serious offense. The Assembly may reach agreements to entrust the administration with the maintenance of all Bionest systems in the condominium. **Forty-six.**

Recycling. The administration and all condominium owners, tenants, residents, occupants, or possessors, under any title, with the exception of subsidiary properties numbers one, two, and three, which shall not be subject to this obligation, are required to properly recycle their waste, for which they must have the appropriate containers for proper storage, without generating pests or bad odors. The following materials are considered recyclable: plastics, aluminum, paper, cardboard, and glass. The Administrator may designate trash bins exclusively for the disposal of recyclable materials, which shall be placed in bins designated for that purpose. **Forty-seven. Composting.** It is established that all condominium owners, with the exception of subsidiary properties numbers one, two, and three, which shall not be subject to this obligation, are required to implement composting practices in their subsidiary properties in order to minimize waste and contribute to the conservation of the environment. The Assembly may reach agreements on the implementation of collective composting systems and processes. **Forty-eight. Waste.** It shall be the responsibility of each condominium owner, tenant, resident, or occupant of a subsidiary, with the exception of subsidiary properties numbered one, two, and three, which shall not be subject to this obligation, to comply with these regulations for the handling of non-recyclable and non-compostable waste: a) They must deposit garbage in bags suitable for this purpose and ensure that these bags do not emit odors or liquids that are harmful to other condominium owners or residents, and that they are properly closed, in closed bins or containers that prevent access by animals. It is prohibited to keep garbage outside the subsidiary, except on the days and times set for collection, if applicable; b) Garbage shall be deposited in the bins provided by the condominium for this purpose. It is prohibited to throw or deposit garbage in the common areas of the condominium; c) Each condominium owner shall be responsible for disposing of non-traditional garbage, including, but not limited to, Christmas trees, electronic equipment, and household appliances in poor condition; **d)** It is strictly prohibited to deposit common or organic garbage in the bins intended for recycling. **Forty-nine. Garbage or Solid Waste Collectors:** All garbage and waste shall be removed periodically by the person designated by the Administrator for this purpose, and the accumulation of such garbage and waste shall not be permitted. All clotheslines, trash cans, firewood, scrap wood, storage sheds, and machinery and equipment shall be prohibited on the lots, unless they are out of sight from neighboring lots and streets; such items may exist if they are hidden by some type of screen or fence, which must also be approved by the condominium administration. The Administrator shall coordinate solid waste collection services through private or public collectors who provide the service efficiently and responsibly. Subsidiaries are required to use the garbage collection system provided by the Administration, and therefore, it is prohibited for any natural or legal person to throw or accumulate solid waste in places not expressly authorized for such purpose, use inappropriate means of transport or accumulation, and proceed with the use, treatment, or final disposal through systems not approved by the Administration. This obligation shall not apply to subsidiary properties numbers one, two, and three. **Fifty. Conservation of Reserve Areas.** All co-owners, tenants, residents, occupants, or possessors, in any capacity, are obliged to ensure the protection, conservation, and improvement of the reserve areas and protection zones of the condominium, with the exception of the protection areas assigned for the exclusive use of a subsidiary, in which case the respective subsidiary shall be responsible for assuming the

protection and conservation of such areas. **Fifty-one.** The Assembly and the Administration may create committees to address environmental issues and implement regulations complementary to these. **SECTION III. REGULATIONS ON TRAFFIC, VEHICLES, AND PARKING. Fifty-two**. **Traffic**. All vehicles and their drivers circulating in the condominium must comply with the requirements for circulation on national roads, always respecting the vertical and horizontal signs of the condominium, particularly, but not limited to, speed limits, yield and stop signs. Similarly, drivers must slow down when passing speed bumps installed in the condominium. **Fifty-three. Vehicle Insurance.** All vehicles belonging to residents of the condominium that circulate within the condominium must be properly insured, with at least third-party liability and civil liability coverage. The Administration may require the same obligation of suppliers. **Fifty-four. Golf carts, ATVs, and similar vehicles.** The use of golf carts, ATVs, mules, or similar vehicles is permitted within the condominium, provided they are driven by a responsible adult at all times. If an owner or resident wishes to allow a minor to drive such vehicles within the condominium premises, they must request permission from the Administration by sending a request duly signed and authenticated by a Notary Public, indicating the reason for the request, the details of the minor to be authorized, and the details of the vehicle to be driven, and, in particular, expressly assume full responsibility for any damage, injury, or loss that may arise from the driving of said vehicle by the minor they authorize, releasing the condominium and other owners from all liability for such circumstances, including but not limited to the consequences of an accident, with said adult accepting full responsibility for the authorization they issue. It is hereby established that the owner's or resident's affiliate jointly and severally guarantees any situation arising from the foregoing, which must also be stated in the application form. The Administration may accept or reject the application, stating the reason for its decision and without assuming any liability whatsoever. In the event that the Administration and/or security of the condominium detect a violation of the above, they shall cordially prevent the minor from continuing to drive the vehicle, reporting the situation to their parents or legal guardians, who shall be requested to come and collect the vehicle. The administrator shall also be empowered to request, through the appropriate channels, the removal of the vehicle from the condominium and/or that the relevant authority order such removal. **Fifty-five. Electric Vehicles.** Due to the increase in the use of electric vehicles nationwide, the condominium administration is authorized to issue the necessary regulations for the installation, operation, and functioning of chargers, always safeguarding the condominium's electromechanical installations. Each owner must bear the cost of installing and purchasing their charger, which will be powered by their electricity meter, with prior written authorization from the Administration. The request submitted by the owner for approval by the Administration must be accompanied by the electromechanical design of the work to be carried out, the suggested location, which may be changed by the administration, the signature of the owner and the professional responsible for the design and inspection of the work, as well as an indication of who will carry it out, making it clear that the Administration may require the issuance of an insurance policy covering any possible damage or harm that may occur.

generate. If the request is rejected, the applicant may, within three days of notification of the rejection, request revocation before the Administration and/or appeal to the Condominium Owners' Assembly, and the Administrator must convene the Assembly within one month of the appeal being filed. The decision of the Assembly shall be final and shall not be subject to appeal. **Fifty-six. Common Parking Spaces or Parking Lots:** Owners and/or their tenants, as well as any other person using the parking spaces, shall be obliged to: a) Respect the parking spaces and their capacity at all times, always respecting the assigned and marked space. In the event of incorrect parking, the Administration may take the appropriate measures, including but not limited to charging fines, placing violation stickers on the windshield of the vehicle, immobilizing it, or removing the vehicle by tow truck, charging the cost to the offender and the subsidiary that occupies or visits it, without any liability on the part of the Administration for such circumstance, including any damage to the vehicle, as it is understood that the situation was caused by the offender due to their failure to comply with the condominium regulations in force; b) Park your vehicle(s) properly, within the spaces designated for this purpose, especially without invading or in any way obstructing the surrounding spaces. Ideally, for safety reasons, it is recommended that vehicles be left in a position ready to leave, but this is a matter that the Administration may regulate in more detail; c) Do not park more than one four-wheeled vehicle or two two-wheeled vehicles per space, unless the parking space allows for two vehicles to be parked due to its assigned capacity; d) Do not park or stop vehicles in such a way as to obstruct or interfere with the free movement, safety, or visibility of other condominium owners, drivers, and pedestrians; e) Do not carry out repairs or maintenance services on your vehicles in the common parking areas of the condominium, unless such repairs are authorized by the condominium administrator;

f) Keep their vehicle(s) in good condition so that they do not affect or alter the safety, health, tranquility, aesthetics, and appearance of the Condominium and its residents. Vehicles are prohibited from causing spills or dirt of any kind, or generating excessive noise; g) Condominium owners, residents, visitors, and suppliers must immediately comply with any observations and/or recommendations made by the Administrator or the Condominium Owners' Meeting, failing which the Administrator shall be empowered to take the corrective and punitive measures established by law, these Regulations, the Administration and/or the Condominium Owners' Association, and the Administrator may charge the cost of the corrective measures to the maintenance fee of the unit occupied by the offender; h) Take the necessary precautions to protect their vehicle, as well as any property and/or accessories found therein, and the Administration or the condominium shall not be liable for any thefts from open vehicles; i) The use of alarms in vehicles is permitted provided that they are in good working order and are not activated unjustifiably in the Condominium. Otherwise, it will be considered a violation of these Regulations, and the Administrator will first issue a written warning to the person using the vehicle in question or to the condominium owner, in order to resolve the problem immediately. If the situation persists, the Administrator will impose a fine of three hundred dollars and will be authorized to arrange for the removal of the vehicle in question from the Condominium, the cost of which will be added to the next monthly fee payable by the owner.

the offender's branch or used by the offender. The same obligation shall apply to guests of the Owners or their Tenants; j) The use of parking spaces for purposes other than this is prohibited, including, but not limited to, their use as a warehouse or space for the storage of all types of items, boxes, garbage, bags, or any other property that causes disorder or alters the aesthetics, beauty, and harmony of the condominium; k) It is strictly prohibited to park buses, minibuses, or trucks in the common areas of the CONDOMINIUM. Similarly, vehicles that are equal to or exceed the space allocated for parking and/or hinder the use of neighboring or adjacent parking spaces will not be allowed to park in the parking lots; l) With regard to the circulation of vehicles within the condominium, the provisions of the traffic law in force must be respected, with express authorization for the entry of the relevant authorities and insurance company officials for the purpose of dealing with any collision or accident that may occur within the condominium's facilities. Likewise, vehicles must be driven at a low speed of no more than twenty-five kilometers per hour within the condominium. m) The use of horns is not permitted at the entrance or inside the Condominium; n) It is understood, in accordance with these Regulations and the law governing this matter, that no condominium owner or resident may appropriate the common parking spaces, unless these Regulations and the Assembly provide otherwise. Any violation of the above shall be considered a violation of these Regulations, and the Administrator shall, in the first instance, issue a written warning to the person responsible for the violation or to the condominium owner responsible, in order for the latter to resolve the problem immediately. If the situation persists or is repeated, the offender will be fined three hundred dollars, and the Administrator will be authorized to arrange for the removal of the vehicle in question from the Condominium, the cost of which will be added to the next monthly fee payable by the offender's Branch or used by the offender. The same obligation shall apply to guests of the Owners or their Tenants. All violations of this article, without prejudice to those specifically indicated in each paragraph, shall be punished in the first instance with an initial fine of three hundred dollars and, in the event of a repeat offense, this shall be increased by fifty percent each time, depending on the number of repeat offenses, without prejudice to the Administration and/or the Assembly imposing a fine greater than those established herein. **SECTION IV. BASIC REGULATIONS FOR THE LEASE OF SUBSIDIARIES. Fifty-seven. Leases.** In order to have greater order in the Condominium with regard to the leasing of subsidiaries and in order to minimize any problems that may arise from such activity, the following basic regulations on leases are established, which are mandatory and binding for owners, tenants, residents, visitors, and suppliers of the Condominium, without prejudice to other regulations established by the Administration and/or Assembly of condominium owners, which shall also be mandatory and binding for all subsidiaries, with the exception of subsidiaries numbers one, two, and three, which shall not be subject to this obligation. a) Owners who wish to lease their subsidiary shall inform the Condominium Administration in writing, reporting the real estate brokers authorized to promote the subsidiary, for which purpose they shall provide their full names, identification with a copy thereof, and contact information, with the owner being responsible for any action or omission on their part that generates any type of

damage, harm, or consequences to the condominium, its residents, or their property; b) If the owner leases their unit, they must inform the Administration in order to coordinate everything related to updating the database and delivering condominium documents and/or entry devices; c) It is the owner's obligation to provide the tenant with a copy of the condominium rules and regulations and other applicable regulations, which may be requested from the Condominium Administration; d) The Administration shall maintain a database of tenants, which shall be fed by the information provided by the owners who lease their subsidiary, and tenants who have been reported by the owners as being in breach of their obligations, including but not limited to the obligation to pay rent, shall be included in said list, which shall prevent them from leasing other subsidiaries within the condominium. **SECTION V. MOVING. Fifty-eight. Moving:** In order to regulate in an orderly manner matters relating to moves within the condominium and to adequately protect the interests and property of the condominium owners and the condominium itself, any person under any title who wishes or needs to move into or out of the condominium must comply with the following guidelines, with the exception of subsidiary properties numbers one, two, and three, which shall not be subject to this obligation: a) The owner of the subsidiary property must notify the Administration in writing at least twenty-four hours in advance or as required by the Administration. The information to be sent to the Administration shall indicate, at a minimum, the date and time when the move is to take place, the proposed logistics, whether the move is into or out of the condominium, and in the case of non-owners moving in, such as tenants, the contract or note from the owner proving their right to occupy the subsidiary property, and the persons authorized to carry out the move. Similarly, you must indicate if the move requires any special arrangements so that the Administration can coordinate accordingly. If the branch is not up to date with its condominium obligations, the Administrator will be entitled to refuse to authorize the move until the condominium obligations are up to date, without incurring any penalty or liability, as this is a situation that must be known and accepted by both owners and tenants or occupants of branches; c) Any person wishing to move into the Condominium must present the authorization for the move issued by the Administrator to the condominium security. In cases where the move is to remove property from a Subsidiary, in addition to the authorization from the Administration, written authorization from the Owner of the Subsidiary will be required. If the aforementioned authorizations are not provided, neither the entry nor the exit of vehicles and moving personnel will be authorized until such authorizations are presented to the Administration, which will not be held responsible for compliance with this rule; d) The moving schedule will be set by the Administration and/or the Condominium Owners' Association according to the criteria that best suit the condominium and must be respected. Exceptionally, the Administrator may authorize in writing that the move be carried out during extended hours, but must justify their decision; e) Owners who have tenants or occupants in their units must inform the Administration in writing of their tenants' move, both for their arrival and departure, and this information must also be communicated to the condominium security; otherwise, the move will not be allowed to take place; f) Any damage caused to the condominium and its property during a move will be assessed and charged t o the respective Branch a n d its owner, who will be jointly a n d severally liable a n d guarantors of the

moving, the cost of the damage will be charged as part of the maintenance fee on the next bill, without prejudice to the right to initiate collection proceedings for the damages prior to sending the respective bill; g) Any person wishing to install or remove from their branch and/or the condominium any type of property that requires special transportation must inform the Administration in advance and coordinate with it the respective authorization and logistics of the move, otherwise the entry or removal of the property will not be permitted until such written authorization is obtained from the Administration. It is understood that the Administration will not assume any responsibility for the application of these rules, and the Administration and/or the Condominium Owners' Association may issue additional regulations on removals, which will be binding and mandatory for all owners, residents, visitors, and suppliers of the condominium. **SECTION VI. PETS. Fifty-nine. Pets:** These regulations apply to the Main Condominium, allowing mixed-use subsidiary properties or future sub-condominiums to establish their own regulations regarding pets, but respecting that these rules shall apply in the common areas of the Main Condominium and residential subsidiaries. Only domestic animals shall be considered pets, and wild animals or endangered species shall not be allowed within the condominium. In addition to the other regulations issued by the Administration and/or Condominium Owners' Association, the following regulations regarding pets are established, which are mandatory within the Main Condominium, unless the Condominium Owners' Association decides otherwise, as it may make modifications to them without these being considered a modification to the regulations: a) Pets may not be kept for commercial purposes, nor may the subsidiaries be used for breeding; b) No pet may disturb the peace and health of the CONDOMINIUM or its residents, and each pet owner must keep their pet in their SUBSIDIARY or in their restricted area, where applicable, ensuring that they do not make excessive noise or generate odors that are unpleasant to other residents; c) If condominium owners wish to walk their pets or take them out of the private areas, they must at all times keep them on a leash or use any other strategy that allows them to maintain control of their pet so that they do not roam freely throughout the condominium; d) Pet owners are required to pick up and clean up after their pets in the CONDOMINIUM immediately, including their own UNIT and private and common areas, so as not to compromise the health of the condominium or generate pests or bad odors therein; e) Pets are not allowed to remain or roam freely in common areas, except when they are passing through, in which case they must be on a leash under the strict supervision of their owner, who must be a responsible person with the necessary strength to restrain the pet if necessary. Pets are also not allowed in parking lots, even if they are tied up or caged. Neither storage rooms nor balconies may be used to keep animals of any kind. In the case of elevators in common areas, pets may only enter the elevator when held by their owner or walker. Small pets must be held, while larger pets must be on a leash or in a carrier, ensuring at all times that the pet is under control and that the safety of other residents is guaranteed. f) Similarly, all pet owners must ensure that their pets have all the necessary vaccinations and do not make excessive noise, odors, or disturbances that affect or disturb the peace of other

co-owners or residents of the condominium, and must always keep them in an environment appropriate to the type of pet. Pets may not be left alone for more than four hours or for any period defined by the Administration; g) Pets certified to assist persons with disabilities are not subject to the above regulations;

h) Pets are not allowed to be bathed in the condominium pools, nor may they enter the common areas dirty or wet; i) It is understood that fish and fish tanks will not be affected by the above regulations, but the installation of fish tanks must be authorized in advance by the Administrator, and the owner must sign a commitment to assume any damage or harm caused by their installation and malfunction, particularly in relation to flooding resulting from any failure thereof. Any violation of the provisions herein shall entitle the Administrator, in the first instance, to issue a written warning to the pet owner. In the event of a repeat offense, a fine of five hundred dollars or the amount set by the Administration and/or the Condominium Owners' Association shall be imposed, which may be increased. If the fine is imposed and there is another recurrence, the Administrator shall be entitled to demand the expulsion of the pet from the Condominium. The same penalty shall apply in the event of a justified complaint from a condominium owner or resident about a pet. Any damage caused by pets, whether in private or common areas, shall be assumed by their owner with joint and several liability of the Branch where they live, and the administration shall be empowered to charge it in the next condominium fee; j) It is hereby established that branches numbers one, two, and three may have the animals permitted by law, without any limitation. **CHAPTER VI. BUILDING REGULATIONS. SECTION I. GENERAL REGULATIONS.**

GENERAL. This chapter establishes the basic regulations for obtaining permits and carrying out construction, remodeling, modification, improvement, expansion, and/or demolition of works in the residential branches of the Condominium, regardless of their scope, it being established that there will be additional and complementary regulations to these, which may even be referred to as Construction Regulations and will also be mandatory, with the exception of subsidiary properties numbered one, two, and three and subsidiary properties G seven hundred and one to G seven hundred and six, which shall not be subject to these construction regulations and shall be free to build on their subsidiaries as permitted by the urban planning and municipal authorities. **Sixty. Urban Planning Regulations.** All owners of residential subsidiary properties in the Condominium, but not those of mixed-use properties, to whom these regulations do not apply, as well as any other person who wishes to build, modify, transform, remodel, or add infrastructure to a residential, non-mixed-use subsidiary property, are obliged to comply with the urban planning provisions of these regulations, those issued by the Condominium Owners' Assembly, the Administration, the approved plans of the Condominium, the National Institute of Housing and Urban Planning, and the Master Plan of the canton where the Condominium is located, the approved plans of the Condominium, and these Regulations. EXCEPTION: The individualized primary subsidiary properties numbered one, two, and three, and G seven hundred and one to seven hundred and six inclusive, shall not be subject to the regulations established herein, but shall be subject to those in force at the municipal and national levels. **Sixty-one: Nature of the Lots.** The lots that make up the condominium are residential, commercial, tourist, and educational in nature, all suitable for construction according to their nature and the regulations of these Rules. It is hereby established that subsidiaries FFPI one, FFPI two, and FFPI three are for tourist, commercial, and residential use, with

Of course, commercial activity includes any lawful commercial activity, including but not limited to agriculture, livestock, and ranching, among others. **Sixty-two. Rules for Consolidating and Dividing Affiliated Properties**. In residential subsidiary properties, the segregation or division of residential subsidiary properties in the CONDOMINIUM is not permitted, nor is the division of sub-subsidiary properties that make up residential sub-condominiums once they have been established, with the exception of mixed-use subsidiary properties a n d , in particular, subsidiary properties numbered one, two, and three, which shall not be subject to this obligation. In the case of non-residential sub-condominiums, division or segregation is permitted and authorized without the need for any prior approval. All types of segregation of subsidiary properties of a mixed residential-commercial, tourist, and educational nature are permitted, with the percentage of value and co-ownership coefficient being distributed proportionally in the resulting property or properties, with segregation not requiring authorization from the Condominium Owners' Assembly or the Construction Committee. resulting property or properties, and the segregation shall not require authorization from the condominium owners' association or the construction committee. Condominium owners may combine adjacent subsidiary properties to form a single unit under a single title deed, without the need for approval by the condominium owners' association. For the purposes of the meetings, their values and percentages shall be calculated by adding those assigned in the deed of incorporation to the subsidiaries that are the subject of the meeting. **Sixty-three. Rules for the Constitution of Individual Condominiums or Subcondominiums:** The owners of subsidiary properties of a residential, commercial, tourist, and educational nature, understood as subsidiaries one, two, three, G seven hundred two, G seven hundred three, G seven hundred four, G seven hundred five, and G seven hundred six, who wish to submit them to the Condominium Property Regime forming independent Condominiums, may do so without the authorization of the Condominium Owners' Assembly, but they must comply with the requirements of the law, on the understanding that, as indicated above, their subsidiary will not cease to belong to the Condominium, and therefore will continue to be affected by the applicable regulations contained in the Rules, which will prevail over the regulations of the sub-condominium, with the exceptions indicated in these Rules. **Sixty-four. Minimum frontage.** The minimum frontage allowed for any residential subsidiary is that stated in the condominium's deed of incorporation, as the segregation or division of the residential subsidiary properties that comprise it is not permitted. In the case of commercial, tourist, and educational subsidiary properties, the minimum frontage shall be that required by current municipal or national regulations. **Sixty-five. Density.** In accordance with the conceptualization of the project, in residential subsidiary properties, only a maximum of one Housing Unit plus auxiliary constructions (storage room, guest room, and others) may be built per residential subsidiary property, taking as a parameter the original composition of the condominium. Therefore, if there is a merger, this maximum will be increased to the sum of the two housing units allowed per lot. Commercial, tourist, and educational subsidiary properties must comply with current municipal or national regulations. **Sixty-six. Lot Area and Coverage. a.** The minimum area of Subsidiary Properties is that established for each subsidiary in the duly approved condominium plans, and no exceptions are permitted. b **.** The coverage area permitted for a single-story Housing Unit may not exceed the coverage established in the description of the respective subsidiary and set forth in the construction plans duly approved by the respective institutions. "**Coverage** Area" is defined as the area of land covered by a structure. The factor is expressed as a percentage, and the following shall be used to calculate the Coverage Area: i . One hundred percent of the projected covered areas on the land; ii. One hundred percent of the projected covered areas on the land, minus the following: a. The area of any structure that is not considered a building, such as fences, walls, and other structures that are not considered part of the building.

Fifty percent of semi-covered areas, understood as areas of land covered with construction elements that allow water permeability, according to criteria that may be expanded by the Construction Committee. All buildings within the residential subsidiary property, whether main dwellings, auxiliary constructions, or internal streets, may not exceed twenty-five percent of the property's surface area in terms of coverage area. In the case of commercial, tourist, and educational subsidiary properties, their coverage shall be as established in the condominium plans and shall be subject to the benefits provided by current national or municipal regulations, depending on the frontage and depth of the respective subsidiary. In the case of residential subsidiary properties, eaves whose horizontal projection exceeds two meters in width shall be included in the calculation of the coverage area, counting from those two meters. The surface area for vehicular circulation shall be calculated according to the material used for its construction, as follows: i. one hundred percent, if made of waterproof material, ii. It shall not be counted if the surface is permeable, all in accordance with the materials defined by the Construction Commission. In the event that the owner has an adjacent subsidiary property, he may, at his discretion, allocate twenty-five percent of the coverage area of both subsidiaries to a single subsidiary, but the other subsidiary shall be unable to be built, as the permitted coverage percentage has been exhausted. In the case of adjoining subsidiary properties, the same principle shall apply, as the aim is to maintain a maximum coverage of residential subsidiaries at twenty-five percent, which means that the rest of the land must be uncovered or permeable. **Sixty-seven. Heights:** The heights allowed on each subsidiary will be those established in the construction plans duly approved by the institutions that authorized them. The maximum height is considered to be the height of the structure built vertically with respect to the natural terrain. To define this height, the last point of the roof or any protrusions from it, such as vents, ducts, and water storage tanks, will be taken into account. Additionally**, the following is established** regarding the **heights of residences: a.** The maximum height of a residential unit is two stories, which must not exceed nine meters. On sloping land, the maximum height limit shall be defined by a virtual plane, parallel to the natural terrain, located at a constant distance of 9 meters from it. b**.** Residential subsidiary properties may have the maximum number of floors indicated by their nature and the condominium site design plans as the maximum height. The construction of small attics or lofts shall be permitted provided that they are contained within the existing height of the roofs, which shall be equal to or less than nine meters from the lowest floor to the highest ridge. **Sixty-eight. Setbacks.** As indicated in the definitions section, a setback is understood to be the existing non-buildable space between the boundaries (property line) of the subsidiary and the structure to be built on it. For construction purposes and for the purposes of these regulations, the following regulations on setbacks are established: a **.** It is the responsibility of the Owner to know, at the time of purchase, the type of setback that applies to the subsidiary they wish to acquire; b**.** Neither the Administrator nor the CONDOMINIUM shall be liable for the Owner's ignorance of the type of setbacks established for the subsidiaries that make up the CONDOMINIUM; c**.** The minimum setbacks to be observed within the CONDOMINIUM, measured from the property line of each Subsidiary Property, shall be as follows: **Front setback** of five meters; The front line is the line that borders the condominium's vehicular traffic lanes. The setbacks from this line are: i. Plots with a slope between zero and twenty degrees according to the topography shall be three

meters. ii. Plots with slopes equal to or greater than twenty-one meters according to topography, the building setback for the space intended for garages may be reduced to one meter fifty centimeters from the front line. iii. Setback applies according to facade design (see Facades section). iv. Eaves may project (horizontally) up to 1 meter within the setback area. This provision applies only to the projection of eaves within said setback, without imposing limitations on the total length of the eaves. **Side Setback:** In single-story residences, the minimum setback shall be three meters, and in two-story residences, the minimum setback shall be four meters. If the property is adjacent to a green area, the setbacks established herein shall not apply to that adjacent area; the **rear setback** shall be five meters. d**.** No construction of any kind, whether temporary or permanent, is permitted in the setback area of the property. The setback area must be a green area. e**.** No overhangs, ornamental projections, balconies, bay windows, or other elements may extend beyond the setback line. f**.** The Building Commission may, if it deems it appropriate, draw up a plan showing the setbacks of each subsidiary to facilitate their identification. g**.** When there are subsidiary properties that border on any type of easement or protected area, the owner may request a written modification of the established setback from the Building Commission. The Commission shall issue a resolution approving or disapproving the owner's request. Any authorization to modify setbacks is made on an exceptional basis and does not create any right or precedent for other Condominium Owners in similar situations. h**.** The felling of existing trees in setback areas should be avoided unless this is essential, either for topographical reasons or due to the shape of the Subsidiary Property. If the Owner wishes to remove a specific tree, they must first request permission from the competent government entity, which shall submit it to the Commission, which shall issue a resolution approving or disapproving the Owner's request. i**. At** the discretion of the Commission, the lateral setback may be eliminated, modified, or not, in whole or in part, on those Subsidiary Properties that border any type of easement or protection zone, if the Owner so requests. The Commission reserves the right to authorize or reject such a request. Any approval of a modification of setbacks is made on an exceptional basis and does not create any right or precedent for other co-owners in similar situations. j**.** If the Subsidiary Property has swimming pools, they must comply with the setbacks established herein; k**.** When an Owner faces special problems with setbacks in the future construction of their subsidiary, whether due to the topography, shape, or location of the Subsidiary Property or any other circumstance, they may request an assessment from the Construction Commission to modify them. The Commission shall issue a resolution approving or disapproving the Owner's request. If the request is rejected, the encroachment of any of the setbacks defined herein is prohibited. **Sixty-nine. Perimeter Divisions.** The CONDOMINIUM has a low-impact ecological design in terms of construction, as established by the coverage and height parameters set out in the construction plans duly approved by the institutions, maintaining a green area concept, which is why the construction of fences or walls is not permitted. Subdivisions may be individualized or delimited according to the following rules: a**. Front boundaries:** The construction of structural elements, retaining walls, fountains, hedges, fences, or enclosures of any kind is not permitted in front gardens or property fronts, except in the case of a very particular condition of the property, in which case the eventual enclosure must be approved by the

Building Commission. **b. Side and rear boundaries:** i) Live hedges may be planted along the side boundaries of the subsidiary property. Likewise, black or green painted security fencing or mesh or cyclone fencing may be installed, duly covered by a living hedge, in the same position mentioned above, but under no circumstances may electro-welded mesh be installed as perimeter divisions. **ii)** The maximum height allowed for living hedges, fencing, or mesh is two meters. c**. Security Systems.** The installation of security and electrical protection systems on perimeter fences or mesh is permitted. The system to be used must be approved by the Construction Commission, on the understanding that it is a reliable system that does not generate false alarms or disturb neighbors, and the owner must keep it in optimal operating and working condition. The installation of razor wire or barbed wire on perimeter divisions is prohibited; d **. Living hedges:** Hedges shall be living and must be trimmed and maintained by their owners so that they do not exceed the maximum height allowed for perimeter divisions or encroach on neighboring properties or common areas. It is recommended that they be made of flowering vines, small bamboo, ficus, schefflera, bougainvillea, pittosporum, ivy, and any other type of plant that can be managed as a hedge, that produces a fencing effect, and that can be properly maintained on both sides of the perimeter division. e**. Enclosure of special areas: i)** Special areas such as clotheslines, air conditioning equipment, water tanks, pet enclosures, and garbage storage areas, among others, may not be exposed to the common areas of the Condominium or neighboring properties and must have an enclosure that matches the finish of the residence. These enclosures must be built in accordance with the building setbacks established in these Regulations and must be approved in advance by the Committee. **ii)** Special areas for gas tanks may not be exposed or visible to the common areas of the Condominium or to neighboring properties. Gas containers must be located in areas with free air circulation, away from doors and windows of the building and any source of ignition (engines, air conditioning). They must be protected from inclement weather (roofing), anchored, marked, and sheltered in a room built with cyclone mesh or another element, which must be protected by plants or hedges that preserve the aesthetics of the condominium. These enclosures must be built in accordance with the building setbacks established in these Regulations. f**. Fences or Cyclone Mesh:** With regard to the fences or cyclone mesh that may be installed on the boundaries in accordance with the regulations herein, it is understood that they shall be installed with a minimum separation of twenty centimeters from the boundary line within the property of the interested party, who shall bear the cost thereof. The setback indicated here is established so that the hedge planted on the boundary can develop properly without disturbing the property of the adjacent owner. **Seventy. Eaves.** Except as indicated in these regulations, the eaves of residences, including canoes, must not encroach on the setback line of their subsidiary, much less affect adjacent subsidiaries. **Seventy-one. Unbuilt Subdivisions.** Unbuilt subdivisions must be kept in perfect condition and maintenance, complying with the following regulations, among others: a**. Unbuilt subdivisions may not be used for: one.** Any activity unrelated to the construction of residences. **two.** Storage of garbage, debris, and/or materials o r waste of any kind. **three.** They may not

be used to park equipment that is not being used in construction or earthmoving work, or as a temporary workshop for repairing defective equipment. **b.** All owners are required to keep their lots in perfect condition. Grass or weeds may not exceed twenty centimeters in height under any circumstances. c**.** If the Owner does not adequately clean their property of weeds and other elements located on it, the Administrator will send them a written notification; if after a period of five calendar days the Owner has not maintained their Branch Property, the Administrator, without being obliged to do so, will be entitled to hire the services of a company to do so and will charge the Owner for the cost thereof. c**.** The Owner shall bear the expenses incurred by the Administrator in maintaining the area in question, plus a twenty-five percent surcharge for administrative services. d**.** Annexes adjacent to a building may only be used for work complementary to the construction of the residences, provided that prior written authorization has been obtained and a copy has been delivered to the administration by the owner of the neighboring lot. **Seventy-two. Facades.** In order to regulate matters relating to the facades of residential subsidiaries a n d to ensure architectural harmony in the residential part of the condominium, without prejudice to the implementation of other regulations or the modification of these regulations in the future, the following minimum regulations are established to be complied with by all residential subsidiaries, and therefore these regulations shall not apply to mixed-use subsidiaries: a **.** The permitted facade styles shall be defined by the Construction Committee or by subsequent agreement of the Assembly, and once defined, all plans submitted to the Construction Commission with the application for the respective permit must include details of the facade and the materials to be used; b**.** The construction of homes under the Integral System is permitted, which is the minimum system allowed, in accordance with the Seismic Code for one- or two-story homes. Prefabricated homes are not permitted. c**.** The exterior paint of the buildings must be of the colors determined by the Construction Commission or the Assembly, which must be harmonious with the rest of the condominium and nature. The palette showing the permitted colors will be available to condominium owners in the administration office. d**.** If the owner wishes to paint in another color, provided that the color is within the range of beige and earth tones, they must request approval from the Construction Commission, which reserves the right to reject a facade color for failing to maintain the harmony and uniformity of the Condominium. e**.** When facades are clad, the color must harmonize with the tones established above. Even if this requirement is met, before installing the cladding, the owner must submit the type of material to be used to the Construction Commission for approval. f**.** Finishing materials, window types, and other construction elements that make up the facades must be in harmony with the style of the condominium in order to preserve its architectural and aesthetic language. They must be previously approved by the Construction Commission. To this end, the plans to be approved must clearly specify the details and finishes of the facades. The following materials should be considered for the design of the enclosures in order to maintain continuity in the architectural language of the project: - Wood: must comply with the guidelines mentioned above, with imitation wood materials being restricted, subject to approval by the Construction Commission. - Stone: consider suppliers in the area or surrounding areas in order to reduce the footprint.

carbon and that they are locations with permission for resource extraction. Imitation stone materials are subject to approval by the Building Commission. - Bamboo and cane: consider local suppliers with certifications or extraction permits. - Brick: fired clay is a recommended material in the area due to its thermal inertia, but sometimes its weight may not be suitable due to the topography. - Masonry or concrete blocks: Modular systems are recommended to reduce waste and increase construction efficiency. If a smooth finish is desired for these walls, a color palette for facades should be considered. - Reinforced concrete walls: It is understood that this system has higher energy demands at the beginning of construction, but its useful life is an advantage as a system. It is recommended to implement a modular design that reduces material waste and increases construction efficiency. - Composite walls with a lightweight structure and fiber cement panels or similar: with this system, it is recommended to use organic insulation within the composition, such as natural straw, cork, wood fiber, among others. These walls should be finished according to the color palette established for facades. - Bahareque or similar walls: the use of this type of enclosure is encouraged in accordance with current national regulations for this type of system. - Rammed earth: for both the traditional version and the version stabilized with concrete-type substances or compounds, the climate of San Mateo, the seismic activity in the area, and current national regulations must be taken into account. - Vegetable wall or green wall: an efficient irrigation system must be provided to supply the wall so that drinking water is not used for this purpose. It is recommended to implement a system for water reuse or collection. See the section on water management. - Natural straw or palm: consider local suppliers with certifications or extraction permits. Artificial palm imitation materials are restricted, but their use may be justified if they have environmental declarations (EPD) or similar, indicating that the material is recyclable or that its raw material is recycled plastic. These will be subject to approval by the Construction Commission. - Natural coatings: clay, lime-based, and beeswax; these must be finished within the color palette established for facades. - Composite materials with wood fiber, SPC ten, or PVC (recycled and/or recyclable): these must be within the color palette established for facades and are subject to approval by the Construction Commission. - Glazed surfaces: in the case of windows or glass, the colors indicated in the color palette for these materials must be complied with. The use of mirror-type films or glass on facades is not permitted. It is recommended to consider systems with laminated glass, with an air chamber or with a solar filter, as thermal and radiation control mechanisms. **Seventy-three. Roofs.** In order to regulate the roofs of the subsidiaries and ensure architectural harmony in the condominium, without prejudice to the implementation of other regulations or the modification of these regulations in the future, the following minimum regulations are established for all residential subsidiaries. These regulations do not apply to mixed-use subsidiaries: a **.** The roofs of residential subsidiary properties must be made of one of the following materials or a combination thereof: - Clay tiles: both mixed and flat tiles may be considered. - Asphalt shingles: consider those that have an environmental product declaration (EPD) and can be recycled so that they can be used as raw material for another material. - Wood shingles: consider the climate for the implementation of this type of roof, the type of wood used for the shingles, and

The slopes recommended by the manufacturer. - Palm or straw: natural or synthetic. If synthetic is chosen, it must have an environmental product declaration or similar. - Galvanized iron: the use of this type of sheet for roofs is permitted, but the finish must be within the color palette for roofs. - Acrylic or glazed roofs: the use of this type of roofing is permitted, but the finish must be within the color palette for roofs. Reflective colors or mirror finishes are not permitted for glazed surfaces. - Green roofs: these must comply with the guidelines indicated for green walls, as indicated above. b**.** In cases where the design of the residence requires it, the exposure of rubber, plastic, acrylic, glass, concrete tiles, or pergolas is permitted, in a range between ten and fifteen percent of the total roof area of the dwelling. The design and material of these roofs must be approved by the Building Commission. c**.** The exposure or visible installation of materials other than those indicated here is not permitted on roofs, unless expressly authorized by the Building Commission, always considering the harmony of the material with the architecture and aesthetics of the project. The installation of equipment on roofs must be avoided, with the exception of solar collectors or panels, which must form an integral part of the roof design and must be submitted to the commission as part of the preliminary project presentation. It is hereby established that the Commission may issue regulations regarding the installation of solar panels or similar elements in order to organize and harmonize their installation. Once approved by the Committee, such regulations shall be mandatory. d**.** The construction of wall coverings on the roofs of residences or buildings is not permitted. e**.** The use of free-fall roof coverings is not permitted. The use of exposed or hidden canoes is mandatory. f**.** In residences, the minimum permitted roof slope is between twenty and forty-five percent. The maximum permitted slope is forty-five percent, and roofs with a reverse slope, toward the interior of the building or residence, are expressly prohibited. **Seventy-four. Windows.** Windows are permitted from the ground level of the residence, provided that the setbacks established in these Regulations and the regulations established by current legislation on this matter are respected. The design and material of the windows must be approved by the Building Commission. a**.** On both the first and second floors, if the residence has side or rear windows, the construction of all such windows must comply with the minimum side and rear setbacks, as well as the heights permitted in each case, as established by current legislation. b**.** If any type of structure is built on the windows that protrudes from the facade, it must comply with the aforementioned setback regulations. c**.** If the construction has a setback of less than one meter, the residence may not have windows. d**.** On windows visible from the outside, the installation of decorations is prohibited, as well as the installation of curtains and/or blinds in bright colors; instead, they must be in neutral tones that harmonize with the colors of the condominium. **Seventy-five. Glass. a.** The installation of any type of stained glass in windows exposed to common areas is prohibited. b**.** The installation of mirrored glass or other reflective materials is not permitted. c **.** Even if sandblasted glass or similar materials are used, no door or window is exempt from complying with the minimum setbacks and window heights established in these Regulations. d**.** The use of windows with natural aluminum frames, white or metallic colors, or any other color that does not harmonize with

the architectural language of the condominium. e. All glass installed must have the necessary safety features to prevent damage and/or accidents to residents. **Seventy-six. Bars.** Bars refer to enclosures typically installed on windows and doors, made of iron or any other material, which must comply with the following minimum regulations, without prejudice to the implementation of others or the modification of these by the Administration, the Construction Commission, or the Assembly itself. a **.** The use of bars on doors and windows on the main façade of the residence, or on façades visible from the outside, whether from common areas or from other affiliated properties, is not permitted. b**.** Exceptionally, their installation will be permitted, if approved by the Construction Commission, on the understanding that the aesthetics of the element to be installed will always be guaranteed, and it must be decorative or installed internally in the subsidiary property. **Seventy-seven. Garages.** Without prejudice to the implementation of other types of regulations on garages or parking spaces in subsidiary properties, the following minimum regulations are established: a**.** Garages may be open or closed with a gate, and if they do not have a gate, they must be tidy and may not be used for storage; they may only be used for parking vehicles. b**.** The dimensions of the garage must be large enough for cars to be contained entirely within this space without encroaching on the property's setbacks. The accumulation of objects in garages is not permitted in order to ensure that they are used exclusively for parking vehicles belonging to the owner or occupant of the subsidiary. **Seventy-eight. Auxiliary structures.** Auxiliary structures, whether attached or detached, shall form part of the architectural ensemble and shall be subject to all general building regulations, including covered area a n d setback requirements. If these structures are visible, they shall blend harmoniously with the main facades, using materials that are consistent with those used in the latter. The elements included in this category are specified below, together with their respective guidelines. i. Laundry rooms and clotheslines. Spaces used for laundry rooms and/or clotheslines must have enclosures with the architectural characteristics of the dwelling, or must be hidden behind living fences, so as to prevent them from being seen from neighboring properties and public spaces. They must maintain the same setbacks specified for the main building. ii. Guest houses, ranches, or cellars. Auxiliary structures to the main dwelling, such as barbecue pits, cellars, guest houses, or service personnel quarters, among others, must be designed in accordance with all the rules of these Regulations. They must be consistent and in harmony with the architecture of the other buildings and the landscape of the land. They must be included in the plans for review by the Building Commission and the Municipality of the Canton. Uncovered barbecue and grill areas must also maintain the setbacks stipulated for all buildings. **Seventy-nine. Access.** Vehicle and pedestrian access entrances to the branches must be constructed with the same material, texture, and color as the sidewalk, pipe, and curb existing within the green and common areas of the Condominium. However, each Owner is free to construct such accesses within the limits of their property, with the materials that best suit them. If the sidewalk, curb, or pipe is destroyed during the construction of the residence, it must be rebuilt at the end of the work with the same material, following the original design, finish, and shape. At all times, owners must

Keep sidewalks and access points in very good condition and free of obstacles and vegetation so that they do not pose a danger to pedestrians. **Eighty. Electromechanical Equipment.** Electromechanical equipment, such as air conditioning units, tanks, and other equipment that may be installed in residences, must not be visible from outside the home, unless prior express authorization has been granted by the Construction Commission. Similarly, such equipment, its installation, and operation must comply with current regulations established by the Ministry of Health, especially with regard to the noise and vibration they may generate, so that they do not exceed the maximum decibels permitted by the health authorities or cause nuisance to other condominium owners. **Eighty-one: Wastewater.** In order to achieve adequate treatment of wastewater from the subsidiaries in an environmentally friendly manner, the use of the BIONEST system for wastewater treatment is mandatory in all subsidiaries of the Condominium, and the installation of any other system is not permitted, unless the Construction Commission approves it for a valid reason. In addition, in order to ensure the proper functioning of the BIONEST system, it is established that: a**.** During system operation, co-owners and residents must use biodegradable cleaning and washing agents so as not to damage the biological water treatment process. The use of chlorinated compounds, acids, alkalis, and any other agents that damage the treatment process in general is prohibited. b**.** Grease traps must be installed at sink and kitchen drains, with sufficient capacity to eliminate grease systematically, either by manual or mechanical extraction or by inoculation with naturally occurring or organic "grease-eating" microorganisms, so as to ensure that grease does not enter the BIONEST system. Non-biodegradable chemical agents may not be used for disposal. c**.** Owners and residents, as well as anyone using the dwellings, must comply with the recommendations given by BIONEST for the proper functioning of the system, which they will maintain as required according to the manufacturer's specifications, preventing it from malfunctioning or producing bad odors. d. The Administration shall be empowered to carry out periodic inspections of the BIONEST systems installed in the subsidiaries and verify their proper functioning. and in the event of detecting faults or malpractice, it may instruct the owner of the subsidiary to take the necessary measures to ensure the proper functioning of the system. If the irregularity is not remedied within fifteen calendar days of notification, it may file the respective complaint with the corresponding authorities, including but not limited to the Ministry of Health. **Eighty-two. Retaining walls.** In order to regulate the retaining walls that may eventually be built at the subsidiaries, without prejudice to the implementation of other regulations or the modification of these regulations in the future, the following minimum regulations are established: a**.** Exceptionally, when the topography of the Subsidiary Properties so warrants and is previously authorized by the Construction Commission, the construction of retaining walls shall be permitted, which, to the extent possible, shall harmonize with the architecture of the condominium. Retaining walls with a maximum height of one meter fifty centimeters may be built. If a higher retaining wall is required, it must be built in sections one meter fifty centimeters high and separated by at least one meter from the next wall. The construction of the wall must begin from the line of

property. **b.** In the event of a difference in levels between adjacent lots, a retaining wall or embankment must be constructed. If a wall is chosen, it must be located on the boundary, and the owners may negotiate the payment of said wall between both parties in equal parts; if they cannot agree, the cost of this wall shall be borne by the owner of the higher lot, who shall construct it to their liking. Finally, if the option is a slope, it shall rest entirely on the higher-level lot; however, this criterion may be modified if the benefit of such structure or slope is mutually shared. Such modification would have to be approved by both neighbors and by the Construction Commission. **Eighty-three. Water Rates During the Construction Process.** The condominium's water service is supplied through one or more water wells, so the water service charge is paid by the condominium administration according to the rates approved by the Condominium Owners' Assembly. During the construction process, the cost of water will be higher per cubic meter than water for residential and commercial purposes. There will be three basic water rates, namely: a . Residential, which will apply to residential subsidiaries that have completed their construction process; b. Commercial, which will apply to subsidiaries for commercial, tourist, or educational purposes; and c. Reproductive, which is the rate that will apply to branches that are under construction, with this rate applying from the pre-construction phase until the end of the construction process, which will be verified by the Condominium Administrator and communicated to the Construction Commission. Each subsidiary must have its own water meter, and the costs of purchasing and installing the water meters in the subsidiaries shall be borne entirely by their respective owners, it being understood that construction may NOT begin, much less occupation of a subsidiary, until it has its own meter. **Eighty-four. Construction Hours:** All construction work carried out in the CONDOMINIUM must comply with the following hours: Monday through Friday from 8:00 a.m. to 5:00 p.m. Saturdays from 8:00 a.m. to 12:00 p.m. Construction work in the branches is strictly prohibited on Sundays. **SECTION II. APPLICATION FOR BUILDING PERMITS.** Without prejudice to any other requirements established by the Construction Commission, the Administration, and/or the Condominium Owners' Meeting, all owners of a residential subsidiary must meet the following minimum requirements, which shall not apply to mixed-use subsidiaries, including subsidiary properties numbered one, two, and three and subsidiaries G seven hundred and one through seven hundred and six, inclusive. **Eighty-five. Requirements for Applying for a Building Permit.** With the exception of subdivisions controlled by the developer, and individualized primary subdivisions one, two, and three, and G seven hundred one through seven hundred six, which are not subject to these regulations, all other residential subdivisions wishing to build in the condominium must meet the following requirements: a**)** Be up to date with the payment of condominium obligations, including ordinary and extraordinary fees, services, fines, penalties, interest, and any other items owed to the condominium. b **)** They must deposit and pay, upon submission of the application, the amount established by the Administration for the review of the construction plans. c**)** They must submit a written application addressed to the Construction Committee and the condominium administrator, which must contain the following: **one.** Name and status of the applicant condominium owner; in the case of a company, provide legal representation, indicating the branch number and real estate registration number; **two.** Detailed written, non-graphical explanation of the work to be performed, indicating

of its scope (whether or not it affects structural and electromechanical parts); **three**. Details of materials and elements to be used in the work; **four**. Logistics plan for the entry and exit of materials and workers to the condominium; **five**. Work schedule to be used and expected start and completion dates for the work; **six**. Professional responsible for the work, with all their contact information and accreditation as a professional registered with the Federated College of Engineers and Architects (CFIA); **seven.** The application must be signed by the professional responsible for the work, who in turn will state that the structural elements and general infrastructure of the CONDOMINIUM will NOT be affected, much less the rights of the other condominium owners; **eight.** Commitment by the owner and the professional responsible that both will always supervise the work and that the condominium regulations in force and applicable will be complied with at all times; **nine.** Express statement by the owner assuming direct responsibility for any consequences, damage, or harm caused by the work, and that in the event that common facilities are affected, they undertake to remedy the situation immediately and cover the corresponding cost; **ten.** Submit a list of the workers who will carry out the work with their identification, as well as a commitment to pay the corresponding social security contributions, and a commitment that said workers will not wander around the condominium and will respect the schedules established by the condominium. **eleven.** A complete set of plans for the work must be attached for review by the construction committee and/or professional hired by the CONDOMINIUM. Once the construction committee approves the work, prior to the start of any work on the property, the contractor must provide the corresponding construction permits, duly authorized by the authorities in charge of such processes, including the municipality of the canton and service providers, as well as any other entity that by law or regulation must authorize the permits. **Eighty-six. Application Procedure:** The application for a permit to build works in the CONDOMINIUM shall be submitted to the Administrator, who shall forward it to the Construction Committee for due processing and analysis. If necessary or in case of doubt, clarifications may be requested from the applicant or the opinion of a professional engineer or architect, whose fees shall be paid from the amount contributed by the condominium owner for the construction permit. The Construction Committee shall have a period of thirty calendar days to review the application and approve it if it is appropriate and there are no doubts about it. otherwise, it shall request the respective clarifications and the application shall be resolved within a period of thirty calendar days from the receipt of the clarifications to the satisfaction of the Construction Committee. If the application is not in accordance, it shall be rejected for reasons stated in the rejection resolution, and the applicant shall have five business days to file a motion for revocation and an appeal, the revocation being resolved by the same committee and the appeal being resolved by the Condominium Owners' Assembly, for which the Administrator shall convene said Assembly within ten business days from the rejection of the motion for revocation, the Assembly resolving the application by a majority vote of those present. If the request is approved, a written approval shall be issued indicating what is authorized, the schedules, and other conditions of approval, including, but not limited to, the condition that in order to commence the works, **the respective construction permit or license** must **be obtained,** and a copy thereof must be delivered to the Administration, otherwise the commencement of the works shall not be authorized.

Eighty-seven. Approval or rejection of the project. If the preliminary project is approved by the Construction Committee, the latter shall issue the corresponding Start Authorization, the effectiveness of which shall, in all cases and without exception, be conditional upon the submission to the Committee of the site design plans approved by the Association of Engineers and Architects. - **Rejection of the application**. The Construction Committee shall be empowered to reject applications for project approval submitted to it when they do not comply with the provisions governing the Condominium, in which case the applicant condominium owner shall make the necessary corrections and modifications and follow the initial procedure for approval, or file an appeal as indicated. - **Appeal.** Any decision of the Construction Committee may be appealed to the Condominium Owners' Meeting, which must be filed with the Administrator within a peremptory period of five business days after the Committee's decision has been notified to the interested party. When this happens, the Administrator shall proceed within the following three business days to convene the Meeting, which shall hear and decide on the appeal. The Assembly's decision to revoke a decision of the Construction Committee shall be taken by a vote of seventy-five percent of the value of the Condominium of those present at the corresponding Assembly, except for those matters which, in accordance with these Regulations, require a higher majority. **Eighty-eight. Failure of the Commission to issue a ruling:** Once the deadline for the Commission to issue a ruling has passed without it having done so in any of the following ways: a**.** Approval or rejection of the preliminary draft, or the need to make modifications to it; b**.** The need to reconvene the Committee due to a lack of quorum to resolve the matter or because of a tie in the vote; or c**.** The need to call a Condominium Owners' Meeting by virtue of a second tie in the Commission's vote shall entitle the Condominium Owner to commence construction of the works, without being subject to fines of any kind. The foregoing shall apply provided that the works commenced are entirely consistent with the preliminary design submitted and comply with the construction and architectural provisions governing the condominium and the applicable legislation. The preliminary design must be approved by the Committee prior to the condominium owner applying for building permits from the relevant public regulatory bodies. **Eighty-nine. Requirements for the Plans to be Submitted with the Permit Application.** As indicated above, the building permit application must be accompanied by a set of plans, which must contain at least the following requirements: a**.** The plans must be submitted in printed form on white paper and on a compact disc in digital format using Auto CAD or Revit .dwg format. b**.** Plans of all facades of the building to be constructed, with details of materials and other specifications (material and color of glass, exterior walls, enclosures, exterior doors and gates, garbage bins, pet enclosures, tanks, and others), location and characteristics of retaining walls, types and dimensions of perimeter enclosures. c**.** Architectural layout plans and location of the residence on the property, with dimensions and area table. d**.** Plan detailing access to the property, with dimensions, elevations, and materials. e**.** Floor plan of roofs indicating their height, slope, gutters, and downspouts, as well as the materials to be used. f**.** If solar collectors are to be installed on the roofs, their design and size must be specified and considered an integral part of the roof design. g**.** Plans with longitudinal and

transverse, with construction details of the building and details of the elevation of the land, specifically in the setback and boundary areas. **h.** The plan and details of the retaining walls, specifying their location, design, elevations, and materials to be used.

i. The plans must be duly signed by a licensed architect or engineer with their membership number of the respective professional association. **j.** Copy of the registered plan of the subsidiary.

k. Any other plans, details, or requirements requested by the construction commission. **Ninety. Plans Approved by the Institutions**: Once the Construction Commission has approved the preliminary design, the applicant Owner may and must continue with the processing of the construction permits before the respective authorities, for which purpose they must submit the plans in accordance with the preliminary design approved by the Construction Commission. Once the Construction Plans have been approved by the relevant institutions, the Owner must submit a copy of these plans, stamped, to the Building Commission so that it can verify that they comply with the approved preliminary project, since if they do not comply, it may reject them and prevent the construction of the project, without incurring any liability. Construction will be suspended until the plans comply with what was approved by the Commission. The Commission and the Administration itself will have the same powers during the execution of the work, since if it is detected that the work does not comply with what has been permitted, the suspension of the work will be ordered, which will be notified to the means indicated by the applicant to receive notifications, and if deemed appropriate, the Municipality and other authorities responsible for granting permits will be notified so that they may take the measures they deem appropriate. The foregoing is without prejudice to the fine that will be imposed on the offender for having violated the condominium regulations. **Ninety-one. Start of Construction.** The construction of the work authorized by the Construction Commission may begin after the following requirements have been met: a**.** The interested party must submit to the Construction Commission the plans duly approved by the respective institutions with proof of payment of the municipal construction license and a copy of said license; b**.** The Construction Commission has verified the information indicated in the previous point and that the permit is fully in accordance with the work authorized by the Construction Commission, in addition to verifying that the applicant has met all the requirements; and c**.** Once the two previous points have been verified, the Construction Commission shall issue the respective authorization to begin work. **Ninety-two: Obligations of the Owners During the Construction Process.** The construction process is considered to begin with the application submitted to the Construction Commission for the construction of a specific work in the condominium and will conclude with the receipt of the work by the Construction Commission. During this period, all owners, suppliers, builders, and other persons involved in the construction process shall have the following obligations and duties: a **.** They must agree to comply with these regulations; b**.** Allow the review of plans and inspection of the work by the Commission and/or the Administrator, or the professional they designate, if applicable; c**.** Comply at all times and immediately with all measures, recommendations, and provisions issued by the Construction Commission and the Administration, including but not limited to the immediate correction of irregularities, as well as complying with any orders to suspend work that may be issued; d **.** Accept the application of the penalties established in these Regulations and those issued by the Construction Commission and/or the Administration, including but not limited to the payment of fines imposed; e**.** Maintain

common areas free of all types of materials, debris, trash, and any other items;

f. Pay for any damage and/or harm caused; **g.** Have the proper environmental permit for the project to be carried out, which must remain in place until the project is completed, ensuring that the environment is not affected during its execution; h. Ensure that all workers involved in the construction process, including suppliers' workers and other persons who must participate in or enter the construction site, are properly insured, have social security coverage throughout the process, and use the necessary safety equipment to ensure their physical integrity. The owner shall be liable for any consequences, damages, and/or losses incurred during the construction process and for non-compliance with condominium regulations, holding the condominium harmless from any liability for such items. **SECTION III. THE CONSTRUCTION PROCESS. Ninety-three. Earthworks.** The following are minimum regulations that must be observed in all earthworks carried out in the condominium, with the exception of those carried out by the developer and subsidiary properties one, two, and three, and subsidiary properties G seven hundred and one to seven hundred and six inclusive, which shall not be subject to these regulations. a **.** In order to begin earthworks, the respective building permits and approval from the Building Commission and/or the Condominium Administrator must be obtained before work can commence. b**.** The owner of the subsidiary where the earthworks are carried out and the person in charge of their execution must take all necessary precautions to prevent damage to the common areas and property of the condominium owners, including, but not limited to, taking the necessary measures to prevent dirt, erosion, landslides, water retention, and other problems that may be caused by the work to be carried out; c**.** Other co-owners must not be affected, nor must damage be caused or dirt left in the common or private areas of the Condominium. Therefore, the necessary precautions must be taken to prevent dirt in the condominium, including cleaning the tires of the equipment to be used before leaving the subsidiary. Similarly, the access roads to the condominium affected by such earthworks must be cleaned as often as indicated by the Administration; d**.** The necessary work must be carried out on the Branch Property to channel rainwater and other water towards the rainwater collection systems designed in the Condominium for such purposes. e**.** Any area of exposed land on the Branch Property resulting from earthworks must be planted within one month of completion of the work with a plant that ensures 100% coverage; f**.** Failure to comply with these regulations shall entitle the Administration and the Construction Commission itself to suspend the works until the irregularity is rectified, without prejudice to any financial penalties that may be imposed for breaches of the condominium regulations or the charging of any damages and/or losses caused to the condominium or the other condominium owners. **Ninety-four. Construction, Modifications, and Repairs. a.** No construction materials or equipment may be brought into the Condominium until approval has been given by the Construction Commission and/or the Administrator to begin construction. b**.** Owners may not change or modify the facades of buildings, accesses, or circulation areas once they have been approved. c**.** No Owner may modify or alter the common areas of the Condominium without the prior authorization of the Construction Committee. d**.** The Owner is responsible for requesting an inspection by the engineer assigned by the Administrator, who will verify and give the

approval of the location of the marks on the external walls to be constructed. This approval is an essential condition for starting the construction of the foundations and walls. The Administrator shall not be liable if the Owner begins such work without this approval and it is subsequently found that the location is not correct and does not comply with the plans submitted to the Commission. e**.** If the vehicle traffic surface is stained or damaged during the construction process, the Administrator shall repair the damage and charge the Condominium Owner for the cost of this work plus twenty-five percent for administrative services. The same percentage shall be charged if common areas are damaged during the construction process. **Ninety-five: Obligations of Construction Companies.** Construction companies, the owner of the subsidiary, professionals, contractors, suppliers, construction crews, and other agents involved in the construction process shall have the following obligations: a**.** To comply with the provisions of these Regulations as well as those issued by the Condominium Owners' Assembly, the Administration, and the Construction Commission; b**.** Respect the work schedule established for the execution of the works in accordance with these Regulations and other condominium provisions, as well as the deadline for the start and completion of the works. c**.** Have a professional responsible for the work at all times. d**.** Assume direct responsibility for any violation of the condominium or national regulations in force, as well as any consequence, damage, or harm caused by said work and attributable to them, expressly accepting the applicable penalties for any infringements, as well as compensation for any damage and/or harm caused by the work. e**.** Submit a list of persons authorized to enter the condominium for the purpose of the work to be carried out, including the construction company, responsible professionals, suppliers, the workers carrying out the work with their identification, as well as a commitment from the construction company and its suppliers to have the respective social security contributions, and a commitment that said workers may not wander around the condominium and must respect the hours for carrying out this type of work, which shall be Monday to Friday from 8 a.m. to 5 p.m., without being authorized to work on Saturdays and Sundays. Exceptions to this rule are those constructions by the developer and/or main construction company of the condominium development, who may work on Saturdays, taking the necessary precautions to minimize inconvenience to neighbors. **eleven.** Express indication of whether or not the work affects the facade. f**.** Submit a letter signed by the legal representative of the construction company in which they commit to: i**.** Ensure that all their workers are registered with the Costa Rican Social Security Fund (CCSS) and the National Insurance Institute (INS) and provide proof of this to the Administrator upon request. **ii.** Confirm that they have a copy of the Building Regulations. **iii.** Confirm that they have a copy of the project's environmental commitments. **iv.** Authorize the Administrator to prevent their company's employees from accessing the construction site if it is found that the Regulations have been violated; v**.** Accept penalties for non-compliance with current condominium and national regulations, including possible suspensions of the work; vi. Any other requirement requested by the Construction Commission and/or the Administrator. g**.** Security Deposit. The construction company and/or the owner must make a deposit of one thousand dollars to the Administrator to cover the cost of repairs for any damage caused by the execution of the work. If no damage occurs, the above amount will be returned at the end of construction. If, on the contrary, it is necessary to use this deposit to repair any damage, the Company

The builder and/or owner must replenish the security deposit so that it always remains at the amount indicated herein. The amount of the deposit may be increased if the Assembly agrees by a simple majority. **h.** Register the name and ID number of the professional responsible for the work and of the other employees of the company involved in the construction of the residence. i**.** Immediately notify the Administrator of any changes in personnel, laborers, supervisors, and/or foremen, as well as any circumstances that may affect the Condominium in any way. i**.** Respect the construction schedule, which shall be Monday through Friday from 6:00 a.m. to 6:00 p.m. and Saturdays from 8:00 a.m. to 12:00 p.m. During legal holidays and the last week of the year, construction companies or crews must suspend work and workers are prohibited from entering the Condominium. The only workers authorized to enter will be those in charge of supervising the work and those previously reported as being in charge of the work. None of these persons may perform construction work. In very special cases, the construction company may request an extension of the established work schedule or permission to work on holidays. It is at the discretion of the Administrator to approve or reject such a request. Similarly, it is hereby stated that this restriction on working hours does not affect the project developer**.** The entry and removal of construction materials and machinery must be reported in advance to the security guard at the Condominium's service entrance**.** Likewise, the number of the residence or Branch Property to which the material or machinery is to be delivered or removed, as well as the name of the construction company, must be reported to the person mentioned in the previous point**.** k**.** It is prohibited to store any type of construction material on the Finca Filial prior to authorization to begin work by the Commission, the institutions involved, and the connection of electricity and water. l**. Sanitary Services.** All construction must have a functioning sanitary service for the construction process, either through the use of a portable toilet or another system approved by the administration, such as a toilet connected to the condominium network, with the understanding that it must be installed within the perimeter of the subsidiary and remain there from the beginning to the end of the work. It must be kept clean and properly maintained at all times. The administrator is authorized to request that the construction company correct, repair, remove, or relocate the sanitary facility in the event of spills, foul odors, or for any other reason that, in the administrator's opinion, is detrimental to the condominium. l**. Construction Material Storage Warehouses.** To install storage warehouses for construction materials, the following provisions must be observed: **one.** These units must be located within the boundaries of the private property; they may not encroach on the common areas of the Condominium or neighboring properties unless the Owners allow it. Anyone authorized to use a neighboring subsidiary property must obtain the written consent of its owner and submit it to the Administrator, who must also agree that once the work is completed, the subsidiary property will be cleared of weeds, construction materials, or debris**.** The walls may be made of wood, plywood, fiberboard, or new galvanized iron sheet painted blue or black. **Three.** The use of containers designed for this purpose is permitted. m**. Temporary Division of the Construction. One.** A temporary division must be placed around the perimeter of any Subsidiary Property where construction is taking place. Black sarán measuring seventy-five by

At least 100% shade, covering up to a height of two meters, properly tensioned with straight wooden slats, placed vertically and evenly distributed around the perimeter of the property. **Two.** The shade must be kept in perfect condition and clean. **Three.** This temporary division must be removed until the construction process is completely finished, that is, until the last worker or contractor has completed the work. n**. Construction Materials: one.** Construction materials, concrete mix, and debris must be stored within the subsidiary property where the work is being carried out. No encroachment on neighboring properties, vehicle accesses, or common areas will be permitted. **two.** Surplus construction materials must be removed at least every three calendar days. Their accumulation on any property during the construction process will not be accepted. o**. Construction Machinery:** Vibratory compactors may be used from 9 a.m. to 4 p.m. Monday through Friday. The Administrator must be consulted to authorize the use of this type of machinery on holidays. Special care must be taken when operating these machines near neighboring buildings. p**. Waste Material and Dust Management: one.** Special care must be taken when handling construction waste, such as trash bags, food packaging, cement bags, among others, to prevent the wind from depositing them on neighboring properties. **two.** Avoid raising dust during the construction process, as this causes discomfort to other residents of the condominium. The construction company must have adequate mechanisms in place to water dust-generating areas on the site as often as necessary. q**. Protection of Common Areas from Construction:** Construction companies must place ballast on the curb and gutter, sidewalks, and common areas located between the street and the property under construction to prevent them from being damaged or broken by heavy vehicles. Soil may not be used as ballast, and common areas must be left in their original condition once the work is completed. r**. Construction personnel are prohibited from doing the following: one.** Entering the condominium's recreational area. **two.** Remaining within the green areas. **three.** Littering the lots adjacent to the construction site. Any waste produced must be properly packaged. **4.** Bringing or consuming any type of alcoholic beverage in the Condominium. **5.** Receiving visitors who are not involved in construction work. **6.** Wandering around the common areas of the condominium. **7.** Remain in the condominium outside of the established construction hours. s**. Entry of street vendors:** Street vendors selling food, clothing, or any other type of item offered to construction crews or their supervisors are prohibited from entering the Condominium. t**. Regarding night security guards for the construction site: one.** There may only be one night security guard per construction site. **2.** The construction company must coordinate with the Administrator and provide all necessary information about the identity of the security guard who will be staying overnight at the site. The Administrator will in turn provide this information to the company that provides security for the Condominium. **Three.** Given that the security company has armed guards 24 hours a day, the security guard assigned to the construction site is prohibited from carrying any type of firearm. **Four.** The security guard must remain within the Subsidiary Property at all times and is prohibited from wandering around the Condominium. **Ninety-six. No Liability.** Neither the Administrator, the Commission, nor the Development Company shall be liable for any misinterpretation of the Regulations b y the Owners o r those responsible for the works.

Condominium rules. The Owner of the Branch Property shall be responsible for any abuse or breach of the Rules and Regulations and shall therefore exercise the appropriate supervision at all times. **Ninety-seven. General. a.** The agreements made by the Construction Committee, the Assembly, and the Condominium Administrator are binding on all Owners of Branch Properties, and the right is reserved to make exceptions for agreements that affect only one or more Branch Properties. b**.** Violations of the Regulations shall be reported to the Administrator and shall be punished in accordance with the provisions of these Regulations. Legal action may also be taken as appropriate. c**.** The provisions of the Condominium Property Law and other laws and regulations in force at the national level shall govern all matters not provided for in these Regulations. **Ninety-eight. Green Areas. a.** The Administrator shall contract the services of a private company to maintain the common green areas. b**.** The Owners of the Subsidiary Properties may not modify the gardens in the common areas, unless they have the prior express authorization of the Construction Commission. c**.** With regard to private green areas, the Owner of the subsidiary shall be responsible for maintaining such areas in optimal condition so that they do not affect the appearance, aesthetics, safety, and health of the condominium. If, for any reason, the Owner fails to maintain their green areas in appropriate conditions and in accordance with the maintenance standards of the Condominium, the Administrator shall proceed to provide the necessary maintenance in order to preserve the harmony, safety, health, and scenic beauty of the project. For this reason, it is hereby established that the Administration and maintenance personnel have the right to enter the private green areas for the purpose of providing adequate maintenance in the event that the Owner or resident fails to comply with this obligation. The cost of maintenance of the private area will be charged to the corresponding subsidiary plus twenty-five percent for administrative expenses, and this will be reflected in the next maintenance fee, forming part of the same. d**.** The internal gardens may have plants of any kind, provided that their height does not interfere with the panoramic views of other buildings and they do not invade or dirty neighboring properties. Similarly, it is prohibited to plant plants that generate bad odors or contribute to the generation of pests. e**.** To maintain the green areas of each Branch Property, the Owner may: do so on their own, hire the Condominium maintenance company, or hire any other company that provides this service. f**.** Any person, whether natural or legal, who maintains the gardens of the Condominium must comply with the following guidelines: **one.** Prior to entering, they must register at the security booth with the following information: the name of the company, the names and ID numbers of the company's employees, and the equipment that will be entering the Condominium for the maintenance of gardens and green areas. **Two.** All workers involved in these tasks must have the necessary protective equipment to perform their work, be uniformed, and/or carry the appropriate identification at all times. Similarly, in order to provide services to the condominium, they must provide the documentation required by the Administration to verify that the service provider is up to date with its obligations, including but not limited to that the personnel providing the service do so legally, are up to date with their obligations to the Costa Rican Social Security Fund, have a work accident insurance policy, and are up to date with their obligations to the

Tax Administration and any other that the Law or the Administrator may require. **Three.** Any change in personnel must be notified immediately to the Administrator prior to the personnel entering the condominium. **Four.** Landscaping service providers, whether for common areas or private areas of the Condominium, may work Monday through Friday from 6:30 a.m. to 4:30 p.m. and Saturdays from 7:00 a.m. to 12:00 p.m. These hours may be modified by the Condominium Administration or the Condominium Owners' Association. **Five.** All waste produced by garden maintenance work must be removed from the site and disposed of appropriately outside the Condominium at the end of the working day, either by the Owner or by the company or crew that hired them. The common areas of the condominium and the private areas of other residents must not be dirtied or altered. **Seven.** If the landscaping maintenance provider hired by the Owner does not comply with the required cleaning and quality standards or with the provisions set forth in these Regulations, the Administrator may deny them entry to the Condominium until they agree to comply with these Regulations and will charge the Owner for any damage or harm caused by this provider. **Ninety-nine. Trees. a.** Buildings must be designed and constructed taking into account the location of existing trees on the Subsidiary Property. b**.** Trees located on the Condominium or within the Condominium may not be cut down unless this is essential or recommended by an expert, either due to the condition of the tree, topographical reasons, or the layout of the Subsidiary Property. If the Owner wishes to remove a specific tree, they must first obtain permission from the relevant government entity, which shall be submitted to the Commission, which shall issue a recommendation to the Committee, which shall ultimately approve or disapprove the Owner's request. The Owner of the Subsidiary Property shall cover all expenses related to the felling of the tree in question. c**.** Condominium owners may plant fruit or ornamental trees within their property, provided that the foliage does not encroach on neighboring properties and that fallen fruit and leaves are collected on a regular basis. Similarly, it is established that trees may not be planted on the property line, but must be kept at least two meters away from it, in order to avoid inconvenience to neighbors and with the understanding that the trees planted must be properly maintained, including pruning. Any damage caused by the tree or trees shall be borne by the owner of the subsidiary where they were planted. In fact, if the damage is evident, the Administration is empowered to take the appropriate measures to prevent or reduce the damage, all of which shall be charged to the subsidiary where the tree causing the damage is located, including, but not limited to, pruning and/or cutting down the tree. d**.** All owners are required to prune and properly maintain the trees on their property so that they are in perfect condition and do not pose a danger to the condominium and its residents. **CHAPTER VII: SECURITY. One hundred. Security.** With the exception of subsidiary properties numbers one, two, and three, which shall not be subject to this obligation, it is established that the condominium shall have the security determined by the Condominium Owners' Association according to the budget approved for the service, which shall be contracted according to the terms determined by the Condominium Owners' Association and/or the Administrator. Security shall preferably be contracted to a company that complies with all legal requirements under Costa Rican law, including, but not limited to,

their registration with the Ministry of Security and the proper carrying of weapons if the contracted service involves the use of weapons that require such a permit; they must also have the policies and insurance required by social security, the National Insurance Institute, and the condominium itself. At the discretion of the Assembly and the Administration, security personnel must cooperate with the Condominium Administration, channeling and reporting in a logbook any complaints and incidents that occur after hours. Similarly, they shall prepare the respective report, which must be signed and delivered to the Administrator within twenty-four hours of the incident. Similarly, at the discretion of the Assembly, the security service may be replaced by another type of service, such as monitoring or concierge service. Notwithstanding the foregoing, the condominium may decide to use electronic security instead of physical security or a combination of both, as agreed by the condominium owners' assembly. **One hundred and one. Control of Access to the Condominium, Neighborhoods, and Residential Sub-condominiums.** The security protocols shall define the ways in which the contracted security personnel shall monitor entry and exit to the Condominium and neighborhoods, recognizing that the town center shall be freely accessible to visitors. Subcondominiums may have their own security and may implement any access controls they wish within the Subcondominium. Neighborhoods may implement security controls, but under no circumstances may such controls affect the movement of other condominium owners or their rights, nor may they establish controls on internal roads of the condominium that lead to other neighborhoods or places within the condominium. **One hundred and two. Possibility of implementing other security regulations.** In addition to the above rules, the Assembly and/or the Administrator may implement other security regulations or provisions that will be binding on all residents, suppliers, and visitors to the condominium. **CHAPTER VIII. PROHIBITIONS. One hundred and three. Prohibitions.** In addition to any other prohibitions contained in these Regulations, those approved by the Condominium Owners' Assembly, the Law or the Regulations to the law, or those imposed by the Construction Commission or the Administration in the exercise of its functions, with the exception of subsidiary properties numbers one, two, and three, which shall not be subject to these obligations, the following is prohibited to owners, tenants, visitors, and any inhabitant or person who enters the Condominium under any title whatsoever: a) To use their subsidiaries for purposes other than those established by the deed of assignment to the condominium property regime; b) Use, lease, or transfer, in whole or in part, the subsidiary properties and/or common areas of the condominium for illegal purposes, contrary to the law, these regulations, and other condominium regulations; c) Directly or indirectly disturb the peace of other owners or residents of the condominium through acts not permitted or prohibited by law, these Regulations, condominium regulations, or any other applicable rule; d) Noise, visual, or any other type of pollution in the condominium, including, but not limited to, that caused by the irrational use of lights, reflectors, musical or sound instruments, electronic equipment, radios, music or sound players, televisions, or sound equipment or similar devices in general, as well as lights, noises, or vibrations of any kind, all of which shall be at the discretion of the Administrator, who is empowered to take the necessary measures to prevent such disturbance, as well as to exceptionally grant special permits for the performance of permitted activities. The hours for parties and social activities in the branches of this

Condominium rules will be defined by the Condominium Owners' Association by simple majority vote. Outside these hours, guests may be allowed inside the branches, provided they remain within them and the noise does not affect, disturb, or inconvenience the other residents of the Condominium. Preferably, external doors and windows should remain closed. e) Installing or throwing furniture, objects, and/or trash from the condominium and general common areas; similarly, it is prohibited to accumulate trash or goods in the branches or burn it inside them, as well as obstructing hallways or access points to the condominium with furniture, objects, or trash; f) Possession of explosive, flammable, toxic, illegal, or unsanitary materials, or materials that may cause damage, nuisance, risk, infectious diseases, as well as materials that pose a danger to the safety of the buildings or are harmful to people, or other materials that produce bad odors, smoke or any other kind of nuisance that may in any way threaten the health or peace of the condominium owners; g) Changing the facades of the subsidiaries or decorating walls, windows or common areas in a manner different from the condominium, without the agreement of two-thirds of the total votes of the condominium, the Condominium Owners' Meeting by LAW or these REGULATIONS; h) Hanging or placing clothes, rugs, or any other type of garment or item in areas that are visible from the common areas of the CONDOMINIUM, including but not limited to balconies, and even the interior of the branch, since in the event of disorder within the branch, the Administration will require that the blinds be lowered in order to avoid any visual pollution that may occur. Failure to comply with the Administration's instructions in this regard will constitute a serious offense and will result in a fine of three hundred dollars in the first instance. If the offense persists, the fine will be doubled and, if the situation is not remedied, the Administration may initiate the procedure established in Article 23 of the Law, without prejudice to any legal action that may be taken to collect the respective fine; i) It is prohibited to use the visible areas of the branch for the storage of goods of any kind. The areas of the branch that are visible from the outside must be clean and in excellent condition. j) Bringing or keeping any kind of non-domestic, exotic, or wild animals in the branch or the CONDOMINIUM is strictly prohibited. The capture or domestication of wild animals that roam the condominium is strictly prohibited, unless they are injured or require assistance, which must be reported and authorized by the Administration and, if necessary, by the respective Government Authorities; k) It is prohibited to generate noise, smoke, or any other pollution that may affect the peace, tranquility, or health of the people inside the condominium; l) It is strictly prohibited to use the pedestrian and vehicular accesses of the condominium for children or adults to play or practice sports, or to install furniture or any other element belonging to the condominium owners, unless with the prior and express authorization of the Administration;

m) It is prohibited to carry out actions or omissions, as well as to possess illegal or prohibited items or items that generate bad odors that affect other residents of the condominium; n) The consumption and sale of beverages and prohibited substances, as well as the performance of any illegal activity or activity that is not compatible with the purposes of the condominium and its nature, are expressly prohibited in the common areas of the condominium, unless prior written authorization has been obtained from the Administrator; o) It is strictly prohibited in the common areas of the condominium to carry any type of weapon, including, but not limited to, knives, daggers, swords, firearms, air guns, explosives, or any other type of object considered dangerous.

as dangerous. Armed suppliers are not allowed to enter the condominium, except for employees of the condominium's security provider, if their contract includes the carrying of weapons. The Administration and/or the Assembly of condominium owners may issue additional regulations to these, which shall be complementary, binding, and mandatory for all owners, residents, visitors, and suppliers of the condominium. **CHAPTER IX: GOVERNING AND ADMINISTRATIVE BODIES: One hundred and four. Governing and Administrative Bodies.** The governing and administrative bodies that will govern the CONDOMINIUM shall be: A**)** The Condominium Owners' Meeting; B**)** The Administrator; C**)** The Condominium Owners' Board; D**)** The Construction Committee; and E) The Neighborhood Committees. **SECTION I. ASSEMBLY OF CONDOMINIUM OWNERS. One hundred and five. The Assembly of Condominium Owners:** The Assembly of Condominium Owners is the supreme body of the Condominium and, therefore, its governing body, by virtue of which its decisions are binding on all condominium owners, tenants, occupants, or possessors, by any title, of subsidiary properties or areas of the Condominium. It shall be made up of all the condominium owners, whether natural or legal persons, who hold title to the subsidiary properties of the Condominium. The Condominium Owners' Meetings shall be chaired by a President and a Secretary appointed by the Meeting for that purpose. The President shall chair the Meeting and the Secretary shall draw up and record the corresponding minutes in the books, as well as keep and file the documents of the meeting, including, but not limited to, the attendance list, powers of attorney, and supporting documents, which shall remain in the Condominium Administration Records. **One hundred and six. Types of Meetings.** There are two types of Meetings: Ordinary and Extraordinary. Ordinary Assemblies shall be those held once a year to hear the administration's report and accounts, as well as to approve the budget for the corresponding period and the appointment of the Administrator. Any other matter shall be dealt with at an Extraordinary Assembly. Ordinary and extraordinary matters may be dealt with at the same Assembly, if so stated in the notice of meeting. **One hundred and seven. Representation at Meetings.** When a subsidiary is owned by several persons in joint ownership or when real rights such as usufruct, use or simple possession have been previously established over it, both the co-owners and the holders of such real rights and the bare owner shall be represented by a single person at the Meeting of Co-owners, in accordance with the provisions of the Law or as mutually agreed by the interested parties, which they shall do in accordance with the formalities of law, and who shall exercise the vote of said subsidiary at the respective Assembly. It shall be possible to represent one or more subsidiaries by granting a special power of attorney for this purpose, which must be accredited at the time of the Assembly. This power of attorney must be duly authenticated by a legal professional, whether a lawyer and/or notary public, and must comply with the provisions of civil law for its granting. If the power of attorney is signed digitally, it will not require any authentication by a legal professional, but must be sent electronically to the administration's email address so that the authenticity of the digital signature can be verified. It should be understood that the waiver of authentication is for the digital signature, not for the electronically signed documents, which may not be used to grant powers of attorney, unless a condominium owners' meeting decides otherwise. It is understood that, in order to vote at the Meetings, each condominium owner must prove their status with suitable documentation, which they shall present at the beginning of the meeting.

of the Assembly, under penalty of not being able to exercise their vote in the event of failure to comply with the provisions herein. **Representation of Sub-Condominiums:** Representation as a co-owner of subsidiaries designated as Sub-Condominiums shall be the responsibility of the Administrator of the respective sub-condominium, on the understanding that said person shall represent a single position on matters submitted to the agenda of the Condominium meeting, without prejudice to the Sub-Condominium, by Assembly of co-owners, deciding to appoint another representative. If no Administrator has been appointed, a Meeting shall be called to appoint a representative to attend the main condominium meeting and to decide how to vote on the items to be discussed. **One hundred and eight. Voting.** Each Affiliate, through its representative, shall exercise its right to vote to the extent granted by law, provided that, for all purposes, each affiliate shall be entitled to vote **in accordance with the percentage of value assigned** in the deed of incorporation of the Condominium. **One hundred and nine. Place and Form of Meetings of the Assembly.** The Condominium Owners' Assembly shall meet at least once a year or when convened; the place of meetings, in the case of face-to-face meetings, shall be at the Condominium's facilities, including the common areas of the main Condominium, or at the place determined in the notice of meeting, provided that it is in the vicinity of the Condominium. Virtual meetings are also permitted, which shall be held via platforms or applications suitable for holding meetings by technological or virtual means, always ensuring the simultaneity, interactivity, and integrity of the participants, and shall be recorded. and the notice of the meeting shall include the link to join the meeting. Mixed meetings, both virtual and in-person, are also permitted, all of which shall be stated in the notice of the meeting. The Condominium Owners' Meeting shall meet on an extraordinary basis when convened by the Administrator or when convened by the condominium owners, in accordance with the provisions of the Law, its regulations, and these Rules. Exceptionally, the Condominium Owners' Board may convene a Meeting. The resolutions adopted by the Condominium Owners' Meeting shall be binding on all of them, even those who are absent or dissenting, with the consequences and obligations that such agreements entail. **One hundred and ten.** Convening **of** the meeting**.** The General Meeting of Co-owners shall be convened by the Administrator at any time. It may also be convened by the Board of Co-owners, or by the owners representing at least one-third of the value of the condominium or the percentage established by law if this is less. All calls shall be made at least **eight calendar days** prior to the meeting, by written communication to all co-owners, with those communications sent to the email address that each co-owner reported to the Administrator being considered valid. Similarly, the call and notification thereof may be made by mail or electronic means, by circular letter delivered to the respective branch, by posting it on the information board provided for this purpose, or, failing that, at the discretion of the Administrator, by publishing a notice with the indicated advance notice in one of the newspapers with the highest national circulation, without counting the day of publication or the day of the meeting in the calculation of the deadline. If the Administrator's term of office has expired, he or she shall retain the power to call the Condominium Owners' Meeting until his or her re-election or the appointment of his or her replacement is registered. If all the votes of the condominium are present, no notice of the meeting shall be required, and this shall be recorded in the respective minutes. **One hundred and eleven. Agenda.** The call for the Owners' Meeting

must detail the matters to be discussed at the Meeting. Owners may submit motions to exclude the discussion of a specific matter from the agenda, change the order in which matters are discussed, or postpone a decision on a particular matter, which must be voted on and approved by a majority of the votes present at the Meeting. In order to safeguard the owners' right of defense, the notice of the Meeting may not include miscellaneous items, nor may matters not included in the notice be discussed at the Meeting. **One hundred and twelve. Attendance.** The Administrator shall be responsible for verifying the quorum for the meeting and shall draw up an attendance list containing the information necessary to verify attendance, which shall be signed by each condominium owner attending the meeting or their respective representative. Similarly, the Administrator shall prepare a record of the Meeting, which shall include the attendance list duly signed by the attendees, the Chair and the Secretary of the Meeting, as well as all supporting documents proving the representation of the attendees, such as powers of attorney and certifications; said record shall be delivered to the condominium Administrator, who shall ultimately be responsible for its safekeeping. **One hundred and thirteen. Quorum.** The quorum for the Condominium Owners' Meeting on first call shall be at least two-thirds of the value of the Condominium or that established by LAW. If the quorum is not reached on first call, the quorum on second call shall be constituted by the attendance of any number of attendees. Each owner shall be entitled to a number of votes equal to the percentage of value assigned to their subsidiary; in the case of sub-condominiums, the percentage of value assigned to said subsidiary prior to its allocation to the sub-condominium shall apply. Only those who are up to date with the payment of condominium fees may vote. The various calls may be made on the same day, provided that they are separated from each other by a period of at least thirty minutes, and they must contain the agenda, the place, the day, and the time when the Assembly will be held, as well as an indication of whether it is the first or second call. **One hundred and fourteen. Approval of Resolutions.** The resolutions of the Assembly shall be approved by the votes of the owners representing the majority of the value of the condominium, unless the Law requires a qualified majority, as required by Article 27 of the Law, which currently provides:

a) Only by unanimous agreement of all owners may the following be done: One—Modify the general purpose of the condominium. Two—Renounce the condominium ownership regime, provided that the resulting plots or units do not contravene other laws. Three- Encumbrance or alienation of the condominium in its entirety. b) Only by agreement of a number of votes representing at least two-thirds of the total value of the building may the following be done: One- Change the special purpose of an ancillary property. Two- Build new floors or basements, excavate, or authorize any of the owners to carry out such work. Three- Acquire new common property, change the use of existing common property, or dispose of it in any way, except if this involves the reduction or elimination of green areas or parks, which will require unanimous agreement. Four- Authorize the leasing of common property. Five- Approve the partial or total reconstruction of the condominium. Six- Change the proportional area of the subsidiaries in relation to the total area of the condominium or the area of the common property. Seven- Change the clauses of the deed of incorporation or the condominium and administration regulations. In the above cases, when a single owner represents at least fifty percent of the total value of the condominium, fifty percent of the remaining votes cast at a meeting of all owners shall also be required.

Assembly. c) Any other agreement or decision shall be approved by the votes of the owners representing the majority of the value of the condominium. It is hereby established that the voting percentages required to adopt the agreements set forth in this section are in accordance with those established in Article 27 of the current Law, and therefore, should they be modified by an amendment to the Law, such modification shall also be understood to affect the percentages set forth herein, which shall be adjusted to comply with the new legislation. It is established that any agreement that seeks to modify, alter, restrict, or affect the rights of subsidiary properties numbers one, two, and three must necessarily have the approval of the owners of said subsidiary properties in order to be valid and enforceable; otherwise, they shall have no effect whatsoever. **One hundred and fifteen. Minutes of the meeting.** Minutes shall be taken of each meeting and shall be recorded in the respective book, which shall be duly legalized or authorized by the Condominium Property Section of the National Registry or the entity defined by law. The agreements reached shall be recorded in said book and shall be signed by the President and Secretary of the meeting. The quorum of the meeting shall be verified by the signature of each condominium owner or their representative on the attendance list, which shall contain, among other information, at least the name of the condominium owner, the name of their representative, if applicable, the branch number and percentage of votes in the meeting, and the signature of the condominium owner or representative. **One hundred and sixteen. Powers of the Assembly.** The Condominium Owners' Assembly shall have the following powers: a) To approve or disapprove the annual budget for common expenses associated with the common property and areas of general use of the Condominium, in accordance with the detailed presentation made by the Administrator thereof. The budget shall determine in detail all expenses and the funds necessary to cover them in proportion to the total value of the condominium, calculate the amount of the fees that each condominium owner must pay to cover common administrative expenses and any other expenses that they are required to cover by law or that have been authorized by the Condominium Owners' Meeting; b) Appoint, remove, re-elect, or sanction the Administrator, as well as set their remuneration and grant them additional powers to those conferred by these Regulations; c) Review the management report and financial statements that the Administrator must submit; d) Authorize repairs and improvements to be made to the building, buildings, and common areas for general use; e) Approve or disapprove the expansion of the Condominium, both in the common areas for general use and in the private areas, and the acquisition of other assets for general use; f) Agree on and set the ordinary and extraordinary fees for the Condominium; g) Grant powers with the authority they deem appropriate; h) Create the internal bodies or committees they deem necessary for the proper functioning and operation of the Condominium; **i)** Appoint and remove the members of the Board of Condominium Owners, honoring the will of each neighborhood, which shall elect its representative to the Board; j) Reform all or part of these regulations, as well as issue complementary regulations, which shall be mandatory; k) If deemed appropriate, revoke the regulations and measures issued by the Administrator in the exercise of their duties; l) Approve useful or necessary improvements required by the common areas and property of general use of the Condominium; m) Appoint auditors, advisors, and consultants, and set their remuneration, with the appointment of co-owners, tenants, or residents to these positions being prohibited; n) Approve the necessary insurance to protect the common area of general access to the Condominium; o) Define and modify the system of penalties and fines for violations or non-compliance with these regulations.

Regulations and other condominium rules, without infringing on the right of each neighborhood to define its own penalties and fines associated with restricted access to common property; p) Regulate and standardize matters relating to common property for general use and the use of common areas for general use, as well as set fines for penalties under these regulations, resolve matters that the Law places under its jurisdiction, and in general, hear and decide on all matters of general interest to the Condominium, agreeing on the necessary and appropriate measures for the better use of the condominium and its services; q) Make any agreements it deems appropriate for the proper running and operation of the condominium. **SECTION II. ADMINISTRATION: One hundred and seventeen. Administration.** The administration of the Condominium, as well as of the common property with all its powers, corresponds to the Administrator, who may be a natural or legal person, a condominium owner or not, and who shall have the powers of a General Proxy without limit of amount with the powers set forth in Article 1,253 of the Civil Code. The Administrator is the legal representative of the Condominium and has sufficient powers to represent it in all judicial, extrajudicial, administrative, and any other matters related to the Condominium, and is also empowered to grant, replace, and revoke powers of all kinds, including, but not limited to, special administrative, arbitral, and/or judicial powers, with the understanding that the granting of such powers does not relieve him of his responsibility and he shall always retain the exercise thereof. Similarly, the Administrator shall be empowered to open and manage bank accounts of any kind, in any currency, with a bank or financial institution with an office open in the national territory. **One hundred and eighteen. Term of appointment and removal.** The Administrator shall be appointed by the Condominium Owners' Meeting as follows. For the initial term, the first appointment of the Administrator shall be for a term of **three years,** and removal shall require a simple majority vote of the Condominium Owners' Meeting. For subsequent terms, the term of appointment of the Administrator shall be for **two years,** and he or she may be re-elected without any limitation. To be removed, a simple majority vote of the Condominium Owners' Assembly shall be required. **One hundred and nineteen. Resignation.** The Administrator may resign from office at any time, giving at least thirty calendar days' notice to the Condominium Owners' Board and shall proceed to convene the Condominium Owners' Meeting, to be held prior to the effective date of his resignation, at which meeting the following items shall be included as minimum items for discussion: the presentation and approval or rejection of his report on his work and the appointment of the new administrator. Upon receiving the notification, the Condominium Owners' Association shall seek offers to replace the Administrator and shall make a recommendation for appointment at the Condominium Owners' Meeting, which shall appoint the new administrator. The resigning Administrator shall be obliged to transfer all information relating to the Condominium in his possession to the Board of Condominium Owners and/or the new administrator, in accordance with the instructions given by the Board of Condominium Owners. **One hundred and twenty. Remuneration.** The Administrator of the condominium shall receive the remuneration determined by the Condominium Owners' Meeting, which shall form part of the condominium's budget. For the election of the Administrator, and to guarantee to the Assembly that his remuneration is reasonable, there must always be at least two or three offers of services for the position of Administrator, and the Condominium Owners' Assembly shall decide which offer to accept for the appointment of the Administrator. **One hundred and twenty-one. Powers of the Administrator.** The Administrator shall have the

powers and authority granted by law and these Regulations, including but not limited to: a) The care and supervision of common property and services; b) The care and maintenance of general facilities and services; c) Carrying out all acts relating to the administration, operation, conservation, and maintenance of common areas and property and those assigned to it by law, these Regulations, and condominium regulations, with the power to enter into agreements of any kind regarding common property and areas, as well as to lease or grant other rights over them if such acts benefit the condominium; d) Ensuring and providing optimal maintenance of access areas, sidewalks, recreational areas, and other common areas and equipment; e) Collect maintenance and condominium fees effectively in the manner determined by these Regulations, the Law, and the Condominium Owners' Meeting, preferably by deposit into the condominium's bank account, and make payments for common expenses; keep detailed accounts of all fund movements; collect monthly fees for common expenses corresponding to each owner;

f) Maintain order by ensuring that the rules of these Regulations, the Law, condominium regulations, morality, and good customs are not violated, and that owners are not disturbed in any way, being empowered to take the measures it deems appropriate against those who disturb order and tranquility, and to impose, in accordance with these Regulations and the Law, all penalties, whether written warnings, penalties, or fines, on condominium owners and other residents of the Condominium; may even arrange and order eviction in accordance with the summary procedure provided for in the Civil Procedure Code, in the event of a repeat offense; is also empowered to impose the penalties provided for in Article 22 of the Law against occupants of the property who are not owners; g) Provide the necessary information to a Certified Public Accountant so that he or she may issue the certification(s) of the amounts owed by the owners for the payment of the fees they are required to pay. Such certification, in accordance with the law, shall constitute an enforceable mortgage title; h) Execute the agreements of the Condominium Owners' Assembly and the guidelines of the Condominium Owners' Board; i) Supervise the work of the employees and suppliers who provide the various services of the Condominium, whose appointment and removal shall be his responsibility; j) Carry out a n d order the necessary repairs to the various services; k) Open in the name of the condominium and carefully and efficiently manage the bank accounts deemed necessary for the proper management of funds, with the members of the Condominium Owners' Association being authorized to sign on such accounts, which may be opened in any currency and at any financial institution with an office in the national territory; l) Determine the place or places where signs or notices may or may not be placed, as well as their type and specifications, and authorize or deny, as appropriate and in accordance with these Regulations, the placement of antennas, satellite dishes, and other similar equipment; m) Take the appropriate measures and issue the necessary regulations to regulate the proper circulation of vehicles and their parking in the condominium's parking spaces and ensure that such parking is carried out in an orderly manner in accordance with the regulations of these Rules and any other condominium regulations that may be implemented; n) In accordance with the provisions of the Regulations and without the need for a resolution of the Assembly to that effect, the Administrator is expressly authorized and empowered to sign on behalf of the Condominium the documents, applications, contracts, a n d public deeds necessary to obtain services f r o m

name of the Condominium, whereby the administrator, on behalf of the Condominium and its areas, may appear before a Notary Public for the purpose of granting deeds of easement, rights of way, and/or donations in favor of public or private institutions responsible for providing the services required by the Condominium, including but not limited to the Costa Rican Institute of Aqueducts and Sewers, the Costa Rican Electricity Institute, and the National Power and Light Company, the administrator also being authorized to sign the respective deeds or contracts, additional deeds or contracts, notes, and any other document necessary to obtain services on behalf of the condominium. In the particular case of donations, in accordance with Article 1408 of the Civil Code, the Administrator shall have the powers of a Special Representative, and may, for this purpose, perform each and every one of the acts indicated above; m) Notify the mortgagee of the obligations guaranteed by any subsidiary of the Condominium of the failure of the Condominium Owner to pay condominium fees or obligations; o) To duly convene the Condominium Owners' Meeting in accordance with these regulations and the law; p) To issue the necessary regulations for the proper use of the common property and areas of the condominium, which shall be mandatory, unless the Meeting, in the case of common property and areas of general access, or the neighborhood committee, in the case of common property and areas with restricted access to said neighborhood, provides otherwise, shall likewise be empowered to set and update fines for violations of condominium regulations and set schedules for the use of common areas, as well as schedules for all types of events in the condominium; q) Suspend common services and prohibit the use of common areas by those condominium owners, residents, or occupants of subsidiaries who are in default of their condominium obligations, without assuming any liability whatsoever, and may likewise reinstate the offender to the use of common services and areas once they have paid their condominium obligations; r) Make arrangements for the payment of condominium fees with the condominium owners, sign agreements, and enforce them if necessary; s) Represent the condominium in all judicial, administrative, and arbitration proceedings, as well as in any other instance, and may grant all types of powers and authorizations for this purpose; t) Participate in Condominium Board meetings, comply with its recommendations, and submit the reports required by the Board in a timely manner; u) Participate in the meetings of the six Neighborhood Committees and comply with the agreements relevant to the restricted access common property of each neighborhood; and v) Perform all acts necessary to ensure the proper administration, conservation, and maintenance of the Condominium, including but not limited to: a) Convening the Assemblies at the time and in the manner established in these regulations; when requested by the Condominium Owners' Association or the Condominium Owners themselves, carrying out disciplinary procedures, handling payment arrangements, resolving conflicts between condominium residents, suppliers, and employees, authorizing or denying moves, supervising renovations or modifications to branches, as well as performing any other duties assigned by law, these regulations, and other applicable condominium regulations. **One hundred and twenty-two. Obligations of the Administrator.** In addition to those imposed by law, these Regulations, and other applicable and current condominium regulations, the Administrator shall have the following obligations: a) To take care of the property of the condominium and the funds collected, with the care of a good family man, being responsible for any loss, damage, deterioration, or harm

suffered through his fault, negligence, malice, or incompetence; b) To submit to the Condominium Owners' Meeting the draft Annual Budget for the administration and the Financial Statements corresponding to the results of his management, supported by his accounting books, which may be audited independently at the request of the Meeting by a simple majority of the votes present and by the auditor appointed by the Meeting; c) Keep detailed accounts of the Condominium, and be accountable to the Board of Condominium Owners and the Owners' Meeting whenever requested; d) Administer the Condominium in accordance with best legal, accounting, administrative, and operational practices; e) Collect maintenance and establishment fees and maintain the legal reserve fund, as well as collect fines, impose deadlines for remedying breaches of these Regulations and the Building Regulations, take appropriate legal action, and prevent and execute evictions of condominium owners. It is responsible for collecting fines for non-compliance with these Regulations or the Law;
f) Ensure that the peace and order that must prevail in the Condominium is not disturbed in any way, as well as take the necessary corrective measures in the event of disturbances; g) Present and provide the available information on the Condominium to the Condominium Owners, when requested; h) Manage the necessary certified public accountant certifications regarding the amounts owed by the owners for ordinary and extraordinary maintenance fees, interest, and fines, at the request of any condominium owner or the Condominium Owners' Association; i) Conduct investigations, issue rulings and opinions requested by the Construction Committee on matters within the competence of that body, as well as appear at hearings to which he or she is summoned by the Condominium Owners' Association or the Construction Committee with voice but no vote, and contribute to the functions of the Condominium Owners' Association or the Construction Committee in all matters permitted by his or her position; j) Carry out any task entrusted to it by the Condominium Owners' Assembly, the Condominium Owners' Board, or the Construction Committee, or imposed on it by law, its regulations, and these Regulations; k) Collaborate with the condominium's neighbors in whatever they may require, including, but not limited to, the preparation of their budget, the maintenance of the neighborhood's restricted-access common areas and property, ensuring that the agreements made by the neighborhood regarding the latter are complied with, and the implementation of any penalties or fines associated with the misuse of the neighborhood's restricted-access common areas and property; l) Inform the Board of Condominium Owners and the Assembly of any situation or contingency of which it is aware that may affect the Condominium and its owners, including, but not limited to, lawsuits, administrative proceedings, expropriations, invasions, and any other situation that may affect the Condominium and its owners; m) Respond in a timely manner to any claim, lawsuit, or proceeding of any kind against the Condominium, with the authority to hire legal counsel as determined by the Condominium Owners' Association; n) Submit to the Condominium Owners' Assembly its annual report, which must include all matters relating to the management of the Condominium, with details of any contingencies and other issues to be resolved by the Assembly; o) Comply with the guidelines, suggestions, and recommendations issued by the Board of Condominium Owners and/or the Owners' Assembly; p) Issue monthly reports or reports at the frequency indicated by the Board of Condominium Owners and the Assembly, including the accounting, financial, and operational reports of the condominium; q) Maintain and keep up to date the Register of Owners and other information of the Condominium, taking due care to safeguard the

databases, and must make regular backups of all information; r) At the end of their term, submit a detailed report on their activities, as well as all documents and files related to the condominium, including but not limited to contracts with suppliers, databases, supporting documents from meetings, and other documents in their possession; s) Comply with all the provisions of the Condominium Owners' Association, the Condominium Owners' Meeting, and those established by law, these Regulations, and other condominium regulations; t) Settle any disputes that arise between owners regarding the use and enjoyment of the common property of the Condominium; u) The Administrator shall exercise due care in the performance of his or her duties and shall be liable only for any fault, negligence, or omission in the care and management of the administration. The Administrator shall be liable for losses attributable to him as a result of his management, fraud, malice, fault, negligence, or actions outside the instructions of the Condominium Owners' Meeting, the Law, its Regulations, and these Regulations, and shall be paid by him from his own assets. **One hundred and twenty-three. Joint and several liability of the Administrator for irregularities.** If the appointed Administrator becomes aware of any irregularity committed by his predecessor in office and does not bring it to the attention of the Owners' Meeting within a period of no more than seven calendar days from the date of becoming aware of the fact, he shall be jointly and severally liable with the previous administrators for the result of such irregularities. **One hundred and twenty-four. Bank account.** As indicated in these Regulations, the Condominium shall have a bank account in which, once opened, all income received shall be deposited; likewise, all payments to be made to cover the expenses required for the administration and maintenance of the condominium shall be drawn from said account, with the Administrator being responsible for making such payments or, failing that, authorizing the person or persons who may make payments from said bank account under the conditions he or she determines. **SECTION III. THE CONDOMINIUM OWNERS' ASSEMBLY. One hundred and twenty-five. The Condominium Owners' Meeting.** The Condominium Owners' Meeting is a body appointed by the Condominium Owners' Assembly with functions different from those of the Condominium Administrator, its main function being to represent the condominium owners before the Administrator, and therefore acting as a liaison between them and the Administrator, and the decisions of the Meeting shall be binding on the Administrator. **One hundred and twenty-six. Composition.** The Condominium Owners' Association shall be composed of at least six members, namely a President, Vice President, Secretary, Treasurer, Member I, and Member II. For reasons of necessity, and when deemed appropriate, the Assembly may appoint additional members who shall have the status of advisors and may participate in the meetings of the Board and express their opinions on the matters discussed, but shall not have the right to vote. **One hundred and twenty-seven. Appointment.** Each neighborhood shall agree on a member of the Neighborhood Committee who will represent it on the Condominium Owners' Association Board. The official appointment and removal of the members of the Condominium Owners' Association Board shall be made by the Condominium Owners' Assembly by a simple majority vote, always following the agreements made by each neighborhood regarding the persons they would like to represent them on the Board. Members shall be elected for a term of **two years and** may be re-elected successively, without prejudice to the Assembly reviewing the appointments annually. **One hundred and twenty-eight. Members of the Condominium Owners' Association:** All members of the Board shall preferably be condominium owners and, if the Assembly approves, on an exceptional basis, in the absence of candidate owners, a non-owner may be elected as a member of the Board.

non-resident, at most. The Board shall consist of at least one neighborhood member, who shall be nominated by their neighborhood prior to the Assembly at which the Board is officially appointed. In the event that a neighborhood does not have anyone to participate in the Board, their position will be filled by any other person from any other neighborhood. All members must be of legal age and have sufficient legal and moral capacity to hold office. Condominium owners or residents who are in arrears with their condominium obligations or have any type of legal proceedings filed against the Condominium may not serve on the Board. All members of the Neighborhood Committee of each neighborhood shall be considered eligible as substitutes in the event that a member of the Board is unable to attend a meeting. **One hundred and twenty-nine. Functions of the Condominium Board:** The Condominium Board shall have the following functions: a) To facilitate and supervise the work of the Administrator, for which purpose it may make binding suggestions and recommendations; b) To promptly and diligently respond to inquiries made by the Administrator or redirect to the Administrator those made directly by the condominium owners; c) To serve as a consultative body to the Administration, participating in important decisions of the condominium, whether due to their impact or economic scope, and issuing opinions which, as indicated, shall be binding on the Administrator; d) To develop and control, together with the Administrator, the execution of the annual operating budget of the Condominium and the budget for investment in useful improvements; e) Collaborate with the Administrator in resolving conflicts within the condominium, whether administrative or operational, with co-owners, suppliers, or visitors, as well as any other conflict or decision that may arise; f) Facilitate the implementation of the agreements made by the Co-owners' Assembly, with the power to clarify and interpret them; g) Facilitate the relationship between the Condominium Owners and the Administrator, collaborate with and advise the Administrator in the resolution of conflicts between Condominium Owners and between them and the Administration, as well as jointly resolve existing conflicts with the Administrator and/or bring them to the attention of the Assembly if their intervention is deemed necessary; h) Participate together with the Administrator in the approval of modifications or reforms to the subsidiaries or common areas of the condominium; i) Coordinate with the Administrator the issues to be discussed at the Condominium Owners' Meetings; j) Request accounts from the Administrator, and may require reports and the delivery of all types of documents; k) Verify the Administrator's performance of their duties, and issue guidelines, recommendations, and/or suggestions, which shall be binding and mandatory for the Administrator and the condominium owners, if they affect them; l) Participate in the drafting of regulations together with the Administrator; m) The members of the Board shall have the power to sign the Condominium's bank accounts, which must be done jointly by at least two of its members; n) Convene a Condominium Owners' Meeting in the event that the Administrator does not wish to do so; o) By majority decision, it may revoke a specific resolution or directive of the Administrator; p) Authorize the Administrator to use the Condominium's reserve funds in cases of qualified emergencies; and q) Any other duties assigned to it by the Condominium Owners' Meeting. **One hundred and thirty. Board meetings:** The Board shall meet at least once every two months or as often as its members determine, at the time they set for that purpose; the Administrator shall necessarily participate in such meetings, unless the Board itself exempts him from attending. Minutes shall be taken at each meeting and shall then be signed by the members or approved by them.

digital form and may be transcribed into the Condominium Owners' Meeting Minutes Book. The agreements reached by the Meeting shall be binding on the Administrator, the condominium owners, residents, tenants, visitors, employees, and suppliers. Meetings may be held in person or virtually. **One hundred and thirty-one. Decision-making.** Board decisions shall be made by a simple majority of its members. In the event of a tie, the President shall have a casting vote to decide the matter. **One hundred and thirty-two. Absences:** In the event of temporary or permanent absences of any of the members of the Board, they may be replaced immediately by another person who is part of the respective Neighborhood Committee. Absences with a named substitute shall not affect the decisions or functioning of the Condominium Board. **SECTION IV. THE CONSTRUCTION COMMITTEE. One hundred and thirty-three. The Construction Commission and its powers:** The Construction Commission or Construction Committee is the body responsible for regulating all matters relating to construction in the Condominium, whether new or involving modifications, alterations, extensions, renovations, or any other type of work to be carried out in the Condominium, and shall be appointed by the General Assembly of Condominium Owners. Its functions include the following: a. It is the body of the Condominium that represents the Owners to ensure compliance with the Building Regulations, interprets them if doubts arise in their application, and establishes a position on the matter. b. It investigates any complaint filed by the Development Company, an Owner, or the Administrator for breaches of the aforementioned regulations. c. It recommends fines and penalties to be imposed in relation to construction issues, which it shall do in writing to the Condominium Owners' Association so that it may communicate them to the person who committed the offense. d. It is familiar with and resolves all aspects related to the interpretation and application of the construction rules in these Regulations, the Building Regulations, and in general with everything related to the urban, architectural, and construction aspects of the Condominium. e. Ensures the architectural harmony and uniformity established by the developer of the Condominium Concept. f. Defines, at its discretion, the acceptance or rejection of architectural and construction proposals submitted by the Owners when they differ from those stipulated in the Building Regulations. The foregoing does not create any right or precedent for the acceptance of all proposals that do not comply with the Building Regulations. **One hundred and thirty-four. Composition of the Construction Committee:** a. The Committee shall be composed of three members who may be natural persons or legal entities; in the latter case, they shall appoint their representative for the purposes of the Committee. Likewise, the position of Chair and Secretary of the Construction Committee shall be appointed at the same meeting by the Condominium Owners' Assembly. Each full member may also appoint a substitute, or the same substitute for all three members, by written notice to the Administrator, who shall be a natural person or legal entity, whether a condominium owner or not, who shall replace the corresponding full member in his or her temporary absence, in each case where the full member so notifies the Secretary of the Committee in writing. If the appointment falls to a legal entity, it may be represented at meetings by a proxy duly appointed by a duly authorized representative. Members may be accompanied at meetings by advisors and professionals they deem appropriate, who shall have the right to speak but not to vote, and who may be Owners or persons not directly related to the Condominium, who shall remain in office for **two years and** may be re-elected for

in the manner indicated below. b. The Assembly shall appoint two members and the Developer shall elect one member to form the Committee. Once the Developer no longer has any interests in the Condominium or subsidiaries in its name, the Assembly shall appoint the three members. The Assembly shall define the positions of Chair and Secretary of the Committee, which shall be the only positions with assigned posts. The Assembly may also decide to increase the number of members of the Construction Committee. c. The project developer shall appoint its member, provided that it owns at least one subsidiary property in the Condominium. Once it no longer has lots in its name, the appointment of this member shall continue to be made by the Assembly. d. It is recommended that the Commission be composed of at least one architect or civil engineer, who must be a member of the Federated College of Engineers and Architects. e. In the event of temporary or permanent absences of any of the members, the remaining members shall appoint a substitute until another person is appointed to fill the vacant position. f. The Construction Committee shall meet when convened by the Administrator or its Chair to discuss the relevant matter. Notices of meetings shall be given at least three business days prior to the date of the Committee meeting, not including the day of notification or the day set for the meeting in calculating the deadline. In addition, they shall indicate the place, date, and time of the meeting, as well as the agenda for the day with the specific items to be resolved and voted on, without allowing the inclusion of miscellaneous items. Failure to comply with any of the above requirements shall render the meeting null and void. Committee meetings shall have a quorum with the attendance of two of its members with voting rights on all items to be resolved indicated on the agenda, and its decisions shall be taken by a simple majority of votes, except in cases where a higher majority is required in accordance with these Regulations or the Construction Regulations. If there is no quorum at the first call, the meeting shall be postponed to a new date determined by the Committee Chair, no later than five business days after the date of the first proposed meeting, and shall be notified by the Secretary in the same manner as described above. On second call, meetings shall have a quorum with the attendance of three of its members, under the same terms as indicated for the first call. At meetings, any full member may be replaced by his or her alternate at his or her request. If all members of the Committee are present, the requirement for prior notice may be waived and the meeting may be held to discuss matters unanimously agreed upon by the Committee. g. All decisions of the Commission must be duly documented and signed by at least two members, and a copy must be received by the Owner of any Affiliated Property being analyzed. h. In order for the meeting to be considered valid, in addition to the respective notice, a minimum quorum of two members shall be required. i. The Assembly shall be responsible for establishing the system and amount by which the members of the Commission appointed by it shall be remunerated. J. Responsibility of the members: Except in cases of willful misconduct, the members of the Committee shall not be liable to the Administration, the co-owners, or any other person for any damage, loss, or harm suffered, or claims arising from their management, as the members act in good faith to the best of their knowledge and shall not be liable for any consequences arising from the approval or rejection of plans, specifications, o r materials, including but not limited t o control plans.

flooding, whether or not defective, the construction or performance of any work or material, whether or not in accordance with the approved plans, specifications, and materials, the development or manner in which the construction of the subsidiary property is carried out. **One hundred and thirty-five. Functions of the Construction Commission:** In addition to the functions and obligations set forth in the Construction Regulations, the Commission shall: a. Respect and enforce the Regulations, verify violations, and proceed against violators in accordance with its powers through the Committee and the Administrator. b. Assist the Administrator in regularly inspecting the Condominium and Subsidiary Properties to verify compliance with the provisions of the Regulations. c. Advise the Administrator on decisions that so warrant. d. Ensure that construction carried out on the Affiliated Properties complies at all times with the regulations of both the INVU and the Canton's Regulatory Plan, the authorized plans, the design of the Condominium, and the Regulations. e. Report any infraction or irregularity and take, through the Condominium Owners' Association and the Administrator, the appropriate legal action against the Owners who violate these provisions. f. Review the respective plans and approve them using the Preliminary Project Approval Form, prior to any construction, remodeling, or modification process. g. Submit in writing to the Committee for review and presentation at the Assembly, proposals for improvements and construction that benefit all Owners. h. In the event that the Regulations do not address a concern of an Owner or the Owner has an additional request not covered by the Regulations, the Commission has the power to approve or disapprove the request at its discretion, always with the intention of contributing to the improvement of the Condominium and contributing to the architectural harmony established in the original concept designed by the Condominium Developer. i. If an Owner submits a request for approval regarding a construction aspect that does not comply with the Building Regulations for reasons that can be technically demonstrated, but which, in the unanimous opinion of the Commission and the Committee, would contribute to improving the Project from the point of view of the architectural harmony defined for the project and to improving its value, or which would benefit only the Condominium Owner, the Commission has the power to approve or disapprove such request, without this becoming a precedent for approving or disapproving other requests. If the request is approved, it must be duly documented and kept in the corresponding file with a copy signed by the Owner and a representative of the Commission. j. Expand or interpret building regulations, as well as submit others for approval by the Assembly. k. Order the suspension, partial or total as appropriate, of any construction work in progress that, in the opinion of the Committee, does not comply with the approved preliminary design and the building and architectural regulations governing the Condominium, as well as authorize the resumption of work once the non-compliance has been remedied. l. Appoint up to two professional advisors of its choice to deal with each matter brought to its attention, and set reasonable fees for the advice requested for the resolution of a matter within the Committee's competence. The fees of such advisors shall be paid by the Condominium, as developed and established by the Building Regulations. The Committee's advisors shall be selected on the basis of criteria of absolute reasonableness and shall be hired by the Committee to issue an appropriate technical or professional opinion for the resolution of each matter. In the event that such advisors are appointed at the request of a Condominium Owner, the fees of

said advisors shall be paid by the latter. n. Any other duties assigned to it by the Assembly. It is expressly stated that the Construction Commission shall have no say in the work carried out on the individual primary subsidiary properties numbered one, two, three, G seven hundred and one to G seven hundred and six inclusive, as these subsidiaries are not subject to the Building Regulations and are therefore not required to apply for permits or undergo assessment by the Construction Commission. **SECTION V. NEIGHBORHOOD COMMITTEES. One hundred and thirty-six. Neighborhood Committees.** Each Neighborhood shall have a Neighborhood Committee made up of three neighborhood property owners, who may appoint two alternates. One of these individuals shall be designated as the community representative on the Condominium Board, and the other individuals shall be willing to substitute for him or her at Board meetings when necessary. The three members shall be chosen by the members of the Neighborhood at a meeting held for that purpose, in accordance with the formalities required for the convening of the Assembly, which may be done by the Condominium Administrator. **One hundred and thirty-seven. Neighborhood Meetings.** Neighborhood meetings shall be held as often as the neighborhood itself decides, but at least one meeting shall be held annually to discuss any issues related to the neighborhood and its assets, at which a maintenance budget for its restricted-access common property shall be approved and sent to the Administrator to be incorporated into the condominium budget in a manner that is funded by the maintenance fees of the corresponding neighborhood. **One hundred and thirty-eight. Condominium Budget.** No Neighborhood or its members may waive the expenses corresponding to the maintenance of the common property of general access of the Condominium, nor that of the common property of restricted access of their neighborhood, and must collaborate with the corresponding contribution as established in these Regulations. **One hundred and thirty-nine. Powers:** Neighborhoods shall have the following powers: a. They may discuss and approve budgets relating to their neighborhoods, which they shall submit to the Administrator for inclusion in the Condominium budget and approval by the Assembly, provided that such budget shall only affect the members of the neighborhood and its affiliates, and not those of other neighborhoods. b. They may set special fees, which shall not require approval by the Condominium Owners' Assembly, and such fees shall be binding on the members of the neighborhood. c. They shall decide on the use and maintenance of the common property located within their neighborhood, always respecting the Condominium Regulations. d. They shall define strategic and vision issues for their neighborhood. e. They may take any other decision that falls within the competence of their neighborhood.

f. Any other matters assigned to them by the Condominium Owners' Assembly. **One hundred and forty. Decisions:** Neighborhood decisions shall be made at neighborhood meetings by a simple majority of votes present, or by any other mechanism agreed upon by the neighborhood, it being understood that these are decisions that do not require another vote under these Regulations and the Law, and that they are decisions that only impact the neighborhood. Minutes of Neighborhood meetings shall be recorded in a book kept for that purpose, which shall be signed by the President and Secretary of said meeting, appointed for that purpose by the Neighborhood. **One hundred and forty-one. Additional agreements** Each neighborhood shall be responsible for making additional agreements regarding its own operation, which shall not contravene the provisions of these Regulations and shall apply only to its own neighborhood. **CHAPTER X: FINANCIAL PROVISIONS OF THE CONDOMINIUM. One hundred and forty-two. Condominium Bank Account.** All

The funds received and managed by the Administrator for maintenance fees in accordance with the annual budget, as well as any other funds or sums of money received by the Administrator for the benefit of the Condominium's expenses, shall be deposited in a bank account set up for this purpose by the Condominium Owners' Meeting in the name of the Condominium, where the Administrator shall be authorized to sign checks, withdraw and deposit funds, close the account and open new ones, as well as perform any other normal bank account operations, for which the decision of the Assembly by a simple majority of votes present shall be required. The persons expressly authorized by the Administrator, including the members of the Board of Condominium Owners, shall also be authorized to sign on the bank account. **One hundred and forty-three. Legal Reserve Fund.** The annual expenditure budgets of the Condominium, once all the subsidiaries have been built or at least construction has begun, shall provide for the establishment and maintenance of a Legal Reserve Fund, by withholding five percent of the cash amount until twenty percent of the annual budget is reached. The Assembly of co-owners, by a two-thirds vote of the total number of co-owners, may decide to start the reserve fund earlier. The legal reserve fund shall be used to meet extraordinary needs for conservation, maintenance, insurance, replacement of common property, and restructuring of the Condominium, o r to make up for any arrears in the collection of maintenance fees from the owners, which must be justified by the Administrator with proof of the Condominium's imperative needs. When the fund falls below the percentage indicated herein, a surcharge shall be reimposed in the amount and manner agreed upon by the Condominium Owners' Meeting, until the agreed amount is reached, so that the Legal Reserve Fund is maintained annually at twenty percent of the Condominium's annual budget. **One hundred and forty-four. Maintenance Fees:** All owners shall be obliged to contribute to the common expenses in proportion to **the percentage of value** assigned to their subsidiary in the deed of incorporation. During the development of the condominium, it is established that the subsidiaries of the Developer will not generate expenses, and therefore will contribute to the payment of condominium expenses with five percent of the percentage of value assigned to said subsidiaries, which will remain in effect until the subsidiary is transferred or occupied by a third party, at which time they will begin to pay one hundred percent of the percentage of the value of the aforementioned fee, a situation that must be taken into account when preparing the budget and collecting ordinary and/or extraordinary maintenance fees, it being understood that any difference will be covered by the remaining owners according to the percentage of value assigned to their subsidiaries within the total value of the Condominium. Affiliates of the Developer are understood to be those that are directly in its name or in the name of the guarantee trust, if any, which it has used as an instrument to finance the development of the Condominium, so that returns from the affiliates of said trust to the Developer shall not, for the purposes of this article, the status of a transfer to third parties and shall maintain their status as subsidiaries of the Developer. a**) Ordinary maintenance fees:** The co-owners of the various subsidiary properties of the Condominium are obliged to contribute an ordinary maintenance fee as indicated above, which shall be used for: a**.i)** The maintenance, modification, and repair of the common property of general access of the Condominium; a**.ii)** The payment of insurance premiums covering civil infrastructure works in the common areas of the Condominium; a**.iii)**

The payment of taxes, fees, or municipal taxes levied on the entire Condominium, its common areas, and common property; **a.iv)** Administration and security expenses, in equal proportions; **a.v)** The fees set for the Administrator: **a.vi)** Expenses for professional services contracted for the Condominium, whether legal, accounting, auditing, surveying, or any other professional service that may be necessary to meet the common needs of all condominium owners; a**.vii)** Payment for garbage collection services; a**.viii)** Maintenance, modification, and repair expenses for common property with restricted access in the neighborhood where they own a subsidiary. Likewise, the Assembly may set an additional ordinary maintenance fee, which shall be calculated in accordance with the agreement of the Assembly and shall apply only to subsidiary properties that have begun construction, and from the date on which such work begins, these fees may have a component relevant to all condominium owners and another relevant t o the condominium owners of each neighborhood. The ordinary maintenance fee, whatever its nature, shall be set by the Condominium Owners' Assembly by a simple majority vote of the condominium owners present at the meeting, as part of the approval of the Annual Budget to be presented by the Administrator, and shall be collected and administered by the Condominium Administrator. The fee must be paid within fifteen calendar days after the due date. Likewise, by simple majority vote of the Condominium Owners' Meeting, the payment of the regular fee on a quarterly basis may be approved at the request of a particular condominium owner, without this implying any surcharge for interest or of any other nature. Any delay in the payment of the regular fee that is not duly authorized shall be subject to the payment of late payment interest established by the Condominium Owners' Meeting for such purpose, which in no case may be less than fifteen percent per annum, a percentage that shall apply in the absence of an express and different determination by the Condominium Owners' Meeting when it approves the ordinary maintenance fee annually, which shall require the approval of the same majority established for this purpose. b**) Extraordinary maintenance fees:** These refer to maintenance fees that are necessary to cover any omission or deficit in the ordinary budget, or those defined by the Condominium Owners' Association by a simple majority vote of those present, to cover extraordinary needs or improvements to the condominium, its facilities, and equipment, and shall be paid in principle in accordance with the percentage of value assigned to each subsidiary in the Deed of Incorporation. There shall be no obligation to pay extraordinary maintenance fees for the Developer's subsidiaries. Failure to pay extraordinary maintenance fees shall be subject to the same default interest as provided for ordinary fees. Neighborhood Committees may also agree on an extraordinary fee to ensure coverage of the actual maintenance costs of the restricted-access common property of each community. c **) Payment of maintenance fees:** Maintenance fees, whether ordinary or extraordinary, must be paid within the first fifteen business days of each month or when defined by the Assembly that approved them, and must be deposited in the Condominium's bank accounts. The obligations for the payment of the maintenance fee by the condominium owner shall be demanded directly, even if they do not personally occupy the property of the subsidiary estate. In the event that the condominium owner does not enable, use, or occupy the subsidiary estate, and cannot be located by the Administrator for the collection of the Condominium maintenance fee, o r having been

located and notified thereof fails to make the required payment within the peremptory term of five business days from the day following the Administrator's notification, those who enable, use, or occupy the corresponding subsidiary property under any title shall be liable for the payment of the maintenance fee and any late payment interest, without prejudice to the joint and several civil liability of the Condominium Owner and the subsidiary. In the event of the sale or transfer under any title of a subsidiary property of the Condominium, the seller is obliged to submit to the Notary Public authorizing the sale a certificate issued by the Condominium Administrator showing that said subsidiary property is up to date with the payment of its common expense fees. In the event that the subsidiary property is in arrears and the sale is completed, the purchaser of the subsidiary property shall be considered jointly and severally liable for the amount certified by the Administrator, without prejudice to the right to collect from the seller any amount owed for this reason. d**) Maintenance fees for independent condominiums:** Similarly, in cases where the subsidiary property is also the parent property of an independent condominium, the ordinary and extraordinary maintenance fees corresponding to said condominium shall be paid proportionally by the owners of the sub-subsidiaries of the independent condominium in accordance with the percentage of the total value of their independent condominium represented by their sub-subsidiaries. The ordinary and extraordinary maintenance fees of the independent condominium shall take into account, when setting their amount, the ordinary and extraordinary maintenance fees of the Condominium, so that the owners of the sub-subsidiaries of the independent condominium contribute proportionally to the payment of the obligations of the subsidiary property of the Condominium that constitutes their parent property of the independent condominium. Such payments shall be deemed to be in favor of the administration of your independent condominium, which in turn shall be responsible for making the full and total payment of the ordinary and extraordinary maintenance fees in favor of the Condominium, at the Administrator's office, retaining the amount corresponding to the exclusive expenses of the independent condominium for the uses and purposes assigned to them. e) **Start date for payment of maintenance fees.** All owners of subsidiaries in the Condominium shall be obliged to pay the maintenance fee from the date of signing the deed of transfer of their subsidiary, and all maintenance fees shall be paid to the bank account(s) of the Condominium, with the owner being obliged to indicate in the transfer or deposit description otherwise there will be no way to identify the payment and the Administration will consider it uncredited, being entitled to apply penalties and other procedures applicable to defaulters. It is prohibited to pay maintenance fees in cash to the Administration; all payments must be made by transfer or deposit to the Condominium's accounts. **CHAPTER XI. PROCEDURE, FINES, PENALTIES, AND DISPUTE RESOLUTION. One hundred and forty-five. Offenses.** Offenses committed by owners and those who exercise their rights shall be punished in accordance with the provisions of the Law Regulating Condominium Property and these Regulations, without prejudice to any fines or penalties established by the condominium owners' meeting, which shall be approved by a simple majority. Fines or penalties shall be set in the first instance by the condominium owners' meeting and must be approved by a simple majority of votes present. If, for any reason, no specific fines have been set, the fine contained in Article 15 of the Law shall apply generically. **One hundred a n d forty-six.**

Procedure. Except for the special procedures established in these Regulations for specific situations, any complaint regarding violations of the Law, these Regulations, or duly approved rules of coexistence against one or more Condominium Owners must be made verbally or in writing to the Condominium Administrator, or in their absence, by the Administrator if they witnessed the violation. The Administrator shall record the date of the complaint or violation, the name of the complainant, and the alleged violator in a book or register kept for that purpose, proceeding as follows: a) In the first instance, within twenty-four business hours of receiving the complaint, the alleged violator shall be notified in writing, and warn them to resolve the situation that gave rise to the complaint immediately, if appropriate and in the Administrator's opinion, or, failing that, grant them a period of up to two hours from receipt of the aforementioned communication to resolve or remedy the situation that gave rise to the complaint; b) If the offender corrects the situation within the terms indicated above, the Administrator shall note this in the Complaints Register and proceed to file it, informing the Condominium Owners' Meeting in due course; c) If, on the contrary, the offender does not resolve the situation within the terms indicated in section A) above, a new warning will be issued requesting that the irregularity be corrected immediately as appropriate and at the discretion of the Administrator, or a final deadline of forty-eight hours from receipt will be granted to correct the offense, with the warning that if the irregularity is not corrected within the final period granted, the offender will be liable to a fine equivalent to one base salary, which will be charged as of right if, upon expiry of the period, the corresponding offense has not been corrected, which will be recorded in a report by the Administrator; d) If, after the fine indicated in the immediately preceding paragraph has been imposed, the violation or breach of the regulations persists, a third warning shall be issued for the purpose of resolving the situation, which shall imply the imposition of a fine equivalent to two base salaries, indicating that if the situation is not resolved immediately upon receipt, the Administrator, as authorized by subsection c) of Article 23 of the Law, without prejudice to taking other actions to obtain payment of fines, interest, or fees of any kind that are outstanding, may request the expulsion of the condominium owner if authorized by the Assembly. It is understood that, in accordance with the Law and these regulations, the subsidiary property shall be liable for any fines and/or financial penalties imposed by the condominium, which shall be collected with the condominium maintenance fee immediately following the application of the financial penalty. **One hundred and forty-seven. Violations due to construction.** In the event that the violations are due to construction or remodeling processes not permitted by the Law and these Regulations, the procedure indicated in the immediately preceding article shall be applied in the first instance with regard to the first warning issued by the Administrator, which shall also be accompanied by an order to suspend the works and an indication that, due to their actions or omissions, they are liable to a fine equivalent to two base salaries. If the irregularity persists and the suspension order is not complied with in open contravention of these Regulations and the Law, this shall be grounds for eviction, and the offender shall also restore the property to its original state. Otherwise, the Administrator may proceed with demolition, if necessary, and restoration of the works to their original state, all at the expense of the offender and guaranteed, in accordance with the Law and these Regulations with the subsidiary property in question. **One hundred and forty-eight.**

Eviction and Removal. When the owner commits offenses or violates the provisions of these Regulations, the Law, or its regulations, the Administrator shall be empowered, in accordance with these Regulations and Articles 22 and 23 of the Law Regulating Condominium Property, to take the necessary measures to obtain eviction and place the property in lease or trust, as long as it continues to belong to the offender. When the owner does not inhabit, use, or occupy the property, those who inhabit, use, or occupy it shall be liable for the offenses contemplated by the Law or these Regulations, without prejudice to the joint and several civil liability of the owner and his or her affiliate. Similarly, the Condominium Administrator, after being granted power of attorney by the respective condominium owner, on behalf of the latter, may take eviction action against a non-owner occupant who repeatedly violates the Regulations, the Law, and its regulations, or who in any way disturbs the normal coexistence of the condominium owners. **One hundred and forty-nine. Power to request the imposition of fines.** In accordance with the provisions of these Regulations, the Condominium Administrator shall be empowered and shall have the obligation to request the offender and the competent judicial authority to impose on the offender, whether the owner or occupant under any title, a fine equivalent to one base salary, in accordance with the provisions of Article 15 of the Law, or their eviction, as appropriate. The sums collected from fines or interest shall be used for condominium works, without prejudice to any compensation that may be due by law. **One hundred and fifty. Suspension of Services for Late Payment of Fees.** Any owner who is in arrears in the payment of ordinary or extraordinary maintenance fees and their respective fines, in addition to the penalties established in these Regulations and the Law, shall entitle the Administrator to suspend their rights to the common services provided by the condominium until the situation is normalized, as they acknowledge and accept that their default or non-compliance is not contributing to the payment of such services. **One hundred and fifty-one. Resolution of conflicts and/or disputes:** Any conflicts, discrepancies, and/or disputes that arise in the condominium shall be resolved in accordance with these Regulations and the LAW, and any additional agreement reached by the Condominium Owners' Assembly, with the understanding that, in the first instance, all conflicts, discrepancies, and/or disputes shall be resolved by the Administrator, who, in very serious or complex cases, may consult the Condominium Owners' Board or any group or committee designated by the Condominium Owners' Assembly regarding a possible solution. The Administrator shall follow the procedures defined by the Condominium Owners' Association to resolve any conflict, disagreement, and/or dispute. If the situation persists and cannot be resolved, the conflict shall be settled in court, according to the jurisdiction established by the civil procedural legislation in force. In the event of disputes between the condominium owners and the Condominium Administration, as well as any other conflict or dispute not expressly regulated by these regulations, they shall be resolved in the first instance by the Condominium Owners' Assembly, which shall be convened in accordance with the procedures contained in these REGULATIONS, or by the group or committee designated by the Assembly. The resolutions of the Assembly, or the designated group or committee, shall be binding on the parties and must be complied with. If, once the resolution of the Assembly has been issued, the conflict persists, the interested parties shall have recourse to the courts, in accordance with the jurisdiction established by civil procedural law, in order to seek a final resolution of their dispute or conflict. **CHAPTER XII. MISCELLANEOUS:**

THIS DOES NOT APPLY TO SUBSIDIARIES 1, 2, AND 3. May be deleted

One hundred and fifty-two. Assignment of subsidiary properties to the Condominium Property Regime: All non-residential subsidiary properties that may, in accordance with these Regulations, be subject to the Condominium Property Regime, thereby creating Independent Condominiums on the properties authorized and designated for such purposes, shall be joined by the common areas of the Condominium. The owners of subsidiary properties who wish to subject their property to the Condominium Property Regime covered by the Law must respect and ensure compliance with the terms, conditions, and provisions contained in these Regulations, if applicable. They must also include in the sub-condominium regulations the obligations that are applicable to them under these Regulations. **One hundred and fifty-three. Interpretation of the Regulations.** The Condominium Owners' Meeting shall be solely responsible for the interpretation of these Regulations, except as provided in favor of the Construction Committee regarding the Construction Regulations, and such interpretation shall be binding on the condominium owners, tenants, administrative staff, and visitors to the Condominium. The interpretation of the Condominium Owners' Meeting shall be based on the opinion of the legal or technical advisors of the Condominium and that of any other professional requested by the Condominium Owners' Meeting. The invalidity or ineffectiveness of any or some of the provisions of these Regulations shall not entail the invalidity or ineffectiveness of the remaining provisions thereof. **One hundred and fifty-four. Termination of the Condominium Ownership Regime:** The Condominium Ownership Regime may be terminated by agreement of the condominium owners at a General Meeting, by unanimous vote of all the owners of subsidiary properties of the Condominium, provided that such termination does not conflict with other legislation on the matter, particularly with regard to any resulting lots or units. The termination of the regime shall take effect upon registration in the Public Registry. In such case, the entries for the parent property and the subsidiary properties shall be canceled in the Condominium Property Section, and the new properties shall be registered in the General Property Section. The rights acquired by third parties shall remain unaffected. **One hundred and fifty-five. Validity and Amendment of the Regulations.** These Regulations shall come into force on the date of their granting and may only be amended in accordance with the procedure established by law, and any decisions affecting mixed-use subsidiaries must necessarily be approved by a majority vote of those subsidiaries. **THIS IS THE END OF THE CONDOMINIUM REGULATIONS.**